PREMIUM BILL

Insured: Cancer Care, Inc.

Date: 07/24/2025

Producer: MARSH & MCLENNAN AGENCY LLC
250 PEHLE AVE STE 400
SADDLE BROOK, NJ 07663-0000

Company: Federal Insurance Company

THIS BILLING IS TO BE ATTACHED TO AND FORM A PART OF THE POLICY REFERENCED BELOW.

Policy Number: 8251-8561

Policy Period: July 26, 2025 to March 31, 2026

NOTE: PLEASE RETURN THIS BILL WITH REMITTANCE AND NOTE HEREON ANY CHANGES. BILL WILL BE RECEIPTED AND RETURNED TO YOU PROMPTLY UPON REQUEST.

PLEASE REMIT TO PRODUCER INDICATED ABOVE. PLEASE REFER TO 8251-8561

Product	Effective Date	Premium
FFRTP050	07/26/25	$5,666.00

TOTAL POLICY PREMIUM	$5,666.00
TOTAL INSTALLMENT PREMIUM DUE	$5,666.00

POLICYHOLDER
DISCLOSURE NOTICE OF
TERRORISM INSURANCE COVERAGE

(for policies with no terrorism exclusion or sublimit)
Insuring Company: Federal Insurance Company

You are hereby notified that, under the Terrorism Risk Insurance Act (the "Act"), this policy makes available to you insurance for losses arising out of certain acts of terrorism. Terrorism is defined as any act certified by the Secretary of the Treasury of the United States, to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of an air carrier or vessel or the premises of a United States Mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

You should know that the insurance provided by your policy for losses caused by acts of terrorism is partially reimbursed by the United States under the formula set forth in the Act. Under this formula, the United States pays 85% of covered terrorism losses that exceed the statutorily established deductible to be paid by the insurance company providing the coverage. Beginning in 2016, the Federal share will be reduced by 1% per year until it reaches 80%, where it will remain.

However, if aggregate insured losses attributable to terrorist acts certified under the Act exceed $100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds $100 billion.

If aggregate insured losses attributable to terrorist acts certified under the Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

The portion of your policy's annual premium that is attributable to insurance for such acts of terrorism is: $ **-0-.**

If you have any questions about this notice, please contact your agent or broker.

Notice of Loss Control Services

Insuring Company: Federal Insurance Company

As a Chubb policyholder, you have loss prevention information and/or services available to you, as listed in this Notice. You may order any brochure by email to formsordering@chubb.com and to view our full suite of loss prevention brochures/services go to www.chubb.com/us/fl-lossprevention

Directors and Officers (D&O) Liability Loss Prevention Services

- ***Directors and Officers Liability Loss Prevention*** **Manuals:**
  Directors and Officers Liability Loss Preventions – #14-01-0035
  Directors and Officers Securities Litigation Loss Preventions – #14-01-0448
  Director Liability Loss Prevention in Mergers and Acquisitions – #14-01-1099
  Directors and Officers Liability Loss Prevention for Not-for-Profit- -#14-01-0036
  Cyber Loss Mitigation for Directors -#14-01-1199

Employment Practices Liability (EPL) Loss Prevention Services

- **Toll-free Hot Line**

  Have a question on how to handle an employment situation? Simply call **1.888.249.8425** to access the nationally known employment law firm of Jackson Lewis P.C. We offer customers an unlimited number of calls to the hot line at no additional charge.

- **ChubbWorks.com**
  ChubbWorks.com is a web-based platform that offers multiple services including overviews of employment laws, sample employment policies and procedures, and on-line training. To gain immediate access to ChubbWorks go to **www.chubbworks.com** and register using your policy number.

- ***Employment Practices Loss Prevention Guidelines*** **Manual**

  Employment Practices Loss Prevention Guidelines - #14-01-0061

- **Loss Prevention Consultant Services**

  Chubb has developed a network of more than 120 law firms, human resources consulting firms, and labor economist/statistical firms that offer specialized services for employment issues.

- **Public Company EPL Customers**

  Employment Practices Loss Prevention Guidelines – Written by Seyfarth Shaw exclusively for Chubb this manual provides an overview of key employment issues faced by for-profit companies and offers proactive idea for avoiding employment lawsuits.

- **Private Company EPL Customers**
  Employment Practices Loss Prevention Guidelines – Written by Seyfarth Shaw exclusively for Chubb this manual provides an overview of key employment issues for –profit companies and offers proactive idea for avoiding employment lawsuits.

Fiduciary Liability Loss Prevention Services

- **Fiduciary Liability Loss Prevention Manual**
  Who May Sue You and Why: How to Reduce Your ERISA Risks and the Role of Fiduciary Liability Insurance #14-01-1019

Crime Loss Prevention Services

- **Crime/Kidnap, Ransom & Extortion Loss Prevention Manual**

  Preventing Fraud: How Anonymous Hotlines Can Help #14-01-1090

Cyber Security Loss Prevention Services

Visit: https://www2.chubb.com/us-en/business-insurance/cyber-security.aspx to learn more about Chubb's Cyber Services for our policyholders.

Health Care Directors and Officers (D&O) Liability Loss Prevention Services

- **Readings in Health Care Governance Manual**
  Readings in Health Care Governance -#14-01-0788
- **ChubbWorks.com**
  ChubbWorks.com for Health Care Organizations – The Health Care Zone is a free online resource containing health care specific loss prevention information for employment practices liability, directors and officers (D&O) liability, and fiduciary liability exposures. To gain immediate access to ChubbWorks go to **www.chubbworks.com** and register using your policy number.
- **Health Care D&O Loss Prevention Consultant Services**
  Health Care D& O Loss Prevention Consultant Services- #14-01-1164

The services provided are advisory in nature. While this program is offered as a resource in developing or maintaining a loss prevention program, you should consult competent legal counsel to design and implement your own program. No liability is assumed by reason of the services, access or information provided. All services are subject to change without notice.

CHUBB®

Chubb Producer Compensation
Practices & Policies

Chubb believes that policyholders should have access to information about Chubb's practices and policies related to the payment of compensation to brokers and independent agents. You can obtain that information by accessing our website at http://www.chubbproducercompensation.com or by calling the following toll-free telephone number:

1-866-512-2862.

CHUBB®

U.S. Treasury Department's Office Of Foreign Assets Control ("OFAC") Advisory Notice to Policyholders

This Policyholder Notice shall not be construed as part of your policy and no coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http//www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

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CHUBB®

Notice to Policyholders

QUESTIONS ABOUT YOUR INSURANCE?

Answers to questions about your insurance, coverage information, or assistance in resolving complaints can be obtained by contacting:

CHUBB
Customer Support Service Department
436 Walnut Street
PO Box 1000
Philadelphia, PA 19106-3703
1-800-352-4462

DECLARATIONS

FEDERAL INSURANCE COMPANY
A stock insurance company, incorporated under the laws of Indiana, herein called the **Company.**

Policy Number: 8251-8561

THE LIABILITY COVERAGE SECTIONS OF THIS POLICY (WHICHEVER ARE PURCHASED) PROVIDE CLAIMS MADE COVERAGE, WHICH APPLIES ONLY TO "CLAIMS" FIRST MADE DURING THE "POLICY PERIOD", OR ANY EXTENDED REPORTING PERIOD. THE APPLICABLE LIMIT(S) OF LIABILITY TO PAY DAMAGES OR SETTLEMENTS WILL BE REDUCED AND MAY BE EXHAUSTED, UNLESS OTHERWISE PROVIDED HEREIN, BY "DEFENSE COSTS". IN THE EVENT THAT SUCH EXHAUSTION OCCURS, THE COMPANY SHALL NOT BE LIABLE FOR "DEFENSE COSTS" OR FOR THE AMOUNT OF ANY JUDGMENT OR SETTLEMENT TO THE EXTENT THAT SUCH COST OR AMOUNT EXCEEDS THE APPLICABLE LIMIT(S) OF LIABILITY SET FORTH IN THIS POLICY. "DEFENSE COSTS" WILL BE APPLIED AGAINST THE APPLICABLE DEDUCTIBLE AMOUNT(S). READ THE ENTIRE POLICY CAREFULLY.

Item 1. **Parent Corporation:** Cancer Care, Inc.
Principal Address: 485 Madison Avenue
New York, NY 10022

Item 2. **Policy Period:**

(A) From 12:01 A.M. on July 26, 2025
(B) To 12:01 A.M. on March 31, 2026
Local time at the address shown in Item 1.

Item 3. **A Combined Maximum Aggregate Limit of Liability option is only available if indicated by X:**

☐ Yes ☒ No The Combined Maximum Aggregate Limit of Liability for all **Claims** under all **Liability Coverage Sections** shall be: N/A

Item 4. **Coverage is only available for the following if indicated by X:**

☐ Yes ☒ No Directors & Officers Liability Coverage Section

☐ Yes ☒ No Employment Practices Liability Coverage Section

☐ Yes ☒ No Fiduciary Liability Coverage Section

☐ Yes ☒ No Miscellaneous Professional Liability Coverage Section

☐ Yes ☒ No Internet Liability Coverage Section

☒ Yes ☐ No Crime Non-Liability Coverage Section

☐ Yes ☒ No Kidnap/Ransom & Extortion Non-Liability Coverage Section

☐ Yes ☒ No Workplace Violence Expense Non-Liability Coverage Section

Item 5. **Extended Reporting Period:**

(A) Directors & Officers Liability Coverage Section, if the **Parent Corporation** is a for-profit organization, the Employment Practices Liability Coverage Section and the Fiduciary Liability Coverage Section:

(1) Additional Period: 1 year
(2) Additional Premium: 0% of Annual Premium

(B) Directors & Officers Liability Coverage Section, if the **Parent Corporation** is a not-for-profit organization, the Miscellaneous Professional Liability Coverage Section and the Internet Liability Coverage Section:

(1) Additional Period:		(2) Additional Premium (AP):		(3) AP with Reinstated Limit:
1	Year	N/A	% of Annual Premium	N/A% of AP
2	Year	N/A	% of Annual Premium	N/A% of AP
3	Year	N/A	% of Annual Premium	N/A% of AP

Item 6. Termination of prior policies:

8251-8561 (Jul 26, 2024 - Jul 26, 2025)

In witness whereof, the **Company** issuing this Policy has caused this Policy to be signed by its authorized officers, but it shall not be valid unless also signed by a duly authorized representative of the **Company**.

FEDERAL INSURANCE COMPANY

Secretary

President

07/24/2025

Date

Authorized Representative

In consideration of payment of the premium and subject to the Declarations and the limitations, conditions, provisions and other terms of this Policy, the Company and the Insureds agree as follows:

I. TERMS AND CONDITIONS

Except for these General Terms and Conditions or unless stated to the contrary in any Coverage Section of this Policy, the terms and conditions of each Coverage Section apply only to that Coverage Section. If any provision in these General Terms and Conditions is inconsistent or in conflict with the terms and conditions of any Coverage Section, the terms and conditions of such Coverage Section shall control for purposes of that Coverage Section. Any defined term referenced in these General Terms and Conditions but defined in a Coverage Section shall, for purposes of coverage under that Coverage Section, have the meaning set forth in that Coverage Section.

II. GENERAL DEFINITIONS

(A) **Anniversary Date** means that date and time exactly one (1) year after the date and time set forth in Item 2(A) of the Declarations of these General Terms and Conditions, and each succeeding date and time exactly one (1) year after the previous **Anniversary Date**.

(B) **Claim** shall have the meaning ascribed to that term in each **Liability Coverage Section**.

(C) **Coverage Event** means the event or loss which must occur, be sustained or discovered in order to invoke coverage under each **Non-Liability Coverage Section**.

(D) **Debtor in Possession** means a debtor in possession as such term is used in Chapter 11 of the United States of America Bankruptcy Code.

(E) **Defense Costs** means that part of **Loss** consisting of reasonable costs, charges, fees (including but not limited to attorneys' fees and experts' fees) and expenses (other than regular or overtime wages, salaries or fees of the directors, officers or employees of the **Insured Organization**) incurred in defending any **Claim** and the premium for appeal, attachment or similar bonds.

(F) **Financial Impairment** means the status of an **Insured Organization** resulting from:

(1) the appointment by any state or federal official, agency or court of any receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate such **Insured Organization**; or

(2) such **Insured Organization** becoming a **Debtor in Possession**.

(G) **Insured** means all organizations, plans and natural persons defined as **Insureds** in each Coverage Section.

(H) **Insured Organization** means the **Parent Corporation** and any **Subsidiary** created at any time or any **Subsidiary** acquired on or before the inception date as set forth in Item 2(A) of the Declarations of these General Terms and Conditions, or subject to Section XI Changes in Exposure of these General Terms and Conditions, during the **Policy Period**. **Insured Organization** shall also mean any such entity as a **Debtor in Possession** or an equivalent status under the law of any other country.

(I) **Insured Person** shall have the meaning ascribed to that term in each Coverage Section. Solely with respect to any **Liability Coverage Section**, coverage for an **Insured Person** shall also include coverage for:

(1) the lawful spouse of such **Insured Person**, if named as a co-defendant with such **Insured Person** solely by reason of such spouse's status as a spouse, or such spouse's ownership interest in property, which is sought by the claimant as recovery for an alleged **Wrongful Act** of such **Insured Person**; and

(2) in the event of the death, incapacity or bankruptcy of an **Insured Person**, the estate, heirs, legal representatives or assigns of such **Insured Person**;

but any such coverage shall apply only with respect to a **Wrongful Act** of such **Insured Person**. All terms and conditions of this Policy, including without limitation, the Deductible Amount applicable to **Loss** incurred by the **Insured Person**, shall also apply to loss incurred by such spouses, estates, heirs, legal representatives and assigns of such **Insured Person**.

(J) **Liability Coverage Section** means the Directors & Officers Liability, Employment Practices Liability, Fiduciary Liability, Miscellaneous Professional Liability and the Internet Liability Coverage Sections of this Policy, if purchased as set forth in Item 4 of the Declarations of these General Terms and Conditions.

(K) **Loss**:

(1) with respect to any **Liability Coverage Section**, shall have the meaning ascribed to that term in such Coverage Section; or

(2) with respect to any **Non-Liability Coverage Section**, means the total amount covered under such Coverage Section as a result of any **Coverage Event**.

(L) **Non-Liability Coverage Section** means the Crime, Kidnap/Ransom and Extortion and Workplace Violence Expense Coverage Sections of this Policy, if purchased as set forth in Item 4 of the Declarations of these General Terms and Conditions.

(M) **Parent Corporation** means the entity named in Item 1 of the Declarations of these General Terms and Conditions.

(N) **Policy Period** means the period of time set forth in Item 2 of the Declarations of these General Terms and Conditions, subject to any prior termination in accordance with Section XIX Termination of Policy of these General Terms and Conditions.

(O) **Policy Year** means the period, within the **Policy Period**, from the date and time set forth in Item 2(A) of the Declarations of these General Terms and Conditions to the first **Anniversary Date**, or the period from an **Anniversary Date** to its next succeeding **Anniversary Date**, subject to any prior termination as set forth in Section XIX Termination of Policy of these General Terms and Conditions.

(P) **Potential Employment Claim** means a complaint or allegation of a **Wrongful Act** in connection with **Discrimination**, **Harassment**, **Retaliation**, **Workplace Tort** or **Wrongful Employment Decision** that does not constitute an **Employment Claim** but which may subsequently give rise to an **Employment Claim** brought by or on behalf of an **Insured Person** that is lodged with the **Insured Organization's** human resource department or other department that provides a function similar to a human resource department. Solely with respect to this Definition (P), the terms **Wrongful Act**, **Discrimination**, **Harassment**, **Retaliation**, **Workplace Tort**, **Wrongful**

Employment Decision, **Employment Claim** and **Insured Person** shall have the meaning ascribed to them in the Employment Practices Liability Coverage Section.

(Q) **Potential Third Party Claim** means a complaint or allegation of a **Wrongful Act** in connection with **Third Party Discrimination or Sexual Harassment** that does not constitute a **Third Party Claim** but which may subsequently give rise to a **Third Party Claim** brought by or on behalf of a **Third Party** that is lodged with the **Insured Organization's** legal department or an individual responsible to receive such complaints or allegations. Solely with respect to this Definition (Q), the terms **Wrongful Act**, **Third Party Discrimination or Sexual Harassment**, **Third Party Claim** or **Third Party** shall have the meaning ascribed to them in the Employment Practices Liability Coverage Section.

(R) **Related Claims** means all **Claims** for **Wrongful Acts** based upon, arising from, or in consequence of the same or related facts, circumstances, situations, transactions or events or the same or related series of facts, circumstances, situations, transactions or events.

(S) **Subsidiary** means:

(1) any entity during any time in which the **Parent Corporation** owns or controls, directly or through one or more **Subsidiaries**, the right to elect or appoint more than fifty percent (50%) of such entity's directors or trustees;

(2) any limited liability company during any time in which the **Parent Corporation** owns or controls, directly or through one or more **Subsidiaries**, the right to elect, appoint or designate more than fifty percent (50%) of such entity's managers;

(3) any corporation during any time in which the **Parent Corporation** owns, directly or through one or more **Subsidiaries**, exactly fifty percent (50%) of the issued and outstanding voting stock and which, pursuant to a written agreement with the owner(s) of the remaining issued and outstanding voting stock of such corporation, the **Parent Corporation** solely controls the management and operation of such corporation ("Controlled Joint Venture"); and

(4) any foundation, charitable trust or political action committee during any time in which such entity or organization is controlled by the **Parent Corporation**.

(T) **Wrongful Act** shall have the meaning ascribed to that term in each **Liability Coverage Section**.

III. TERRITORY

Coverage shall extend anywhere in the world.

IV. EXTENDED REPORTING PERIOD

(A) In the event of:

(1) termination or nonrenewal of a **Liability Coverage Section**; or

(2) a decrease in limits, reduction of coverage, increased deductible or self-insurance retention, new exclusion, or any other change in coverage less favorable to the **Insured**,

(a "Termination of Coverage"), any **Insured Organization** or **Insured Person** shall have the right to an Extended Reporting Period as set forth in this Section IV, for **Loss** from **Claims** first made

against an **Insured** during such Extended Reporting Period but only for **Wrongful Acts** committed or allegedly committed after any applicable Retroactive Date and before such Termination of Coverage. In the event of a Termination of Coverage under subparagraph (1) of this paragraph (A), such Extended Reporting Period will be effective only as to the terminated or nonrenewed **Liability Coverage Section**. In the event of a Termination of Coverage under subparagraph (2) of this paragraph (A), such Extended Reporting Period will be effective only as to that coverage terminated.

(B) Upon a Termination of Coverage of a **Liability Coverage Section**, the **Company** will automatically provide, at no additional premium, an Extended Reporting Period for sixty (60) days after the effective date of such Termination of Coverage. The limit of liability for such Extended Reporting Period shall be part of and not in addition to the applicable Limit of Liability for the **Policy Year** immediately preceding the effective date of the Termination of Coverage. No later than thirty (30) days after the effective date of a Termination of Coverage, the **Company** will advise the **Parent Corporation** in writing of the automatic Extended Reporting Period, and of the availability, the premium for, and importance of purchasing an additional Extended Reporting Period.

(C) Upon a Termination of Coverage of a **Liability Coverage Section**, any **Insured Organization** or **Insured Person** may purchase, in addition to the automatic Extended Reporting Period, an additional Extended Reporting Period for **Loss** from **Claims** first made during such additional Extended Reporting Period but only for **Wrongful Acts** committed or allegedly committed after any applicable Retroactive Date and before such Termination of Coverage, subject to the following terms, conditions and limitations:

(1) for the Directors & Officers Liability Coverage Section if the **Parent Corporation** is a for-profit organization, the Fiduciary Liability Coverage Section and/or the Employment Practices Liability Section: the length of such additional Extended Reporting Period will be one (1) year and the limit of liability will be part of, and not in addition to, the Limit of Liability applicable to such **Liability Coverage Sections**; and

(2) for the Directors and Officers Liability Coverage Section if the **Parent Corporation** is a not-for-profit organization, the Miscellaneous Professional Liability Coverage Section and/or the Internet Liability Coverage Section: the length of such additional Extended Reporting Period will be (3) years, unless the **Insured** purchasing such Extended Reporting Period chooses to purchase a one (1) or two (2) year Extended Reporting Period; and the limit of liability will be:

(a) one hundred percent (100%) of the maximum aggregate Limit(s) of Liability applicable to such **Liability Coverage Section(s)** for the immediately preceding **Policy Year**, if a claims-made relationship between the **Company** and the **Parent Corporation** has continued for at least three years for the applicable **Liability Coverage Section** purchased; or

(b) the greater of fifty percent (50%) of the maximum aggregate Limit(s) of Liability applicable to such **Liability Coverage Section(s)** for the immediately preceding **Policy Year**, or the amount of coverage remaining in such maximum aggregate Limit(s) of Liability as of the effective date of Termination of Coverage, if a claims-made relationship between the **Company** and the **Parent Corporation** has continued for less than three years for the applicable **Liability Coverage Section** purchased;

(c) if a **Claim** is first made against an **Insured** during the **Policy Period**, such **Claim** shall be subject to the then remaining applicable Limit of Liability for such **Policy**

Period and in no event shall the limit of liability applicable to the Extended Reporting Period apply to such **Claim;**

(3) the additional premium for such additional Extended Reporting Period will be the percentages of annual premium set forth in ITEM 5 of the Declarations of these General Terms and Conditions and the entire additional premium for the Extended Reporting Period shall be deemed fully earned at the inception of such Extended Reporting Period;

(4) written acceptance of, and the premium for, any additional Extended Reporting Period must be submitted to the **Company** and the premium must be paid:

(a) within the later of:

(i) sixty (60) days of the effective date of Termination of Coverage; or

(ii) thirty (30) days of the date of the notice described in paragraph (B) above; or

(b) one hundred twenty (120) days of the effective date of Termination of Coverage, if the **Parent Corporation** has been placed in liquidation or bankruptcy or has permanently ceased operations and neither it nor its designated trustee has purchased any such additional Extended Reporting Period;

(D) Upon Termination of Coverage: (1) any return premium due to the **Parent Corporation** shall be credited towards the premium for any additional Extended Reporting Period purchased by the **Parent Corporation**; and (2) if premium is owed to the **Company** during the **Policy Period**, any amount received by the **Company** as payment for an Extended Reporting Period shall be first applied to such premium owed for the **Policy Period**.

V. LIMIT OF LIABILITY

(A) Solely with respect to all **Liability Coverage Sections**:

(1) If the combined maximum aggregate Limit of Liability for all **Liability Coverage Sections** is purchased, as set forth in Item 3 of the Declarations of these General Terms and Conditions, such amount shall be the combined maximum aggregate liability of the **Company** for all **Loss** from all **Claims** first made during each **Policy Year** under all **Liability Coverage Sections** combined, regardless of the number of **Claims**; provided that, the maximum aggregate liability of the **Company** for all **Loss** from all **Claims** first made during each **Policy Year** under each **Liability Coverage Section** shall not exceed the respective maximum aggregate Limit of Liability as set forth in Item 2 of the Declarations for each applicable **Liability Coverage Section**, regardless of the number of **Claims**. If the maximum aggregate Limit of Liability of any **Liability Coverage Section** as set forth in Item 2 of the Declarations for each applicable **Liability Coverage Section**, is less than the combined maximum aggregate Limit of Liability for all **Liability Coverage Sections** as set forth in Item 3 of the Declarations of these General Terms and Conditions, such lesser limit shall be a sublimit and such amount shall be part of, and not in addition to, the combined maximum aggregate Limit of Liability for all **Liability Coverage Sections** as set forth in Item 3 of the Declarations of these General Terms and Conditions.

(2) If the combined maximum aggregate Limit of Liability for all **Liability Coverage Sections** is not purchased, as set forth in Item 3 of the Declarations of these General Terms and Conditions, the maximum aggregate liability of the **Company** for all **Loss** from all **Claims** first made during each **Policy Year** under each **Liability Coverage Section** shall be the

respective maximum aggregate Limit of Liability as set forth in Item 2 of the Declarations for each applicable **Liability Coverage Section**, regardless of the number of **Claims**.

(3) Except as otherwise expressly provided in any **Liability Coverage Section**, **Defense Costs** are part of and not in addition to the applicable maximum aggregate Limit of Liability as set forth in Item 2 of the Declarations for each applicable **Liability Coverage Section** and payment by the **Company** of **Defense Costs** shall reduce and may exhaust such Limit(s) of Liability.

(B) Solely with respect to each **Non-Liability Coverage Section**, the **Company's** maximum liability shall be the respective Limit(s) of Liability described in the applicable **Non-Liability Coverage Section**.

VI. DEDUCTIBLE AMOUNT AND CO-INSURANCE AMOUNT

(A) Solely with respect to any **Liability Coverage Section**:

(1) The **Company's** liability with respect to **Loss** arising from each **Claim** covered under one or more **Liability Coverage Sections** shall apply only to that part of **Loss** which is in excess of the applicable Deductible Amount and Co-Insurance Amount set forth in the Declarations of each applicable Coverage Section. If different parts of a single **Claim** are subject to different Deductible Amounts, the applicable Deductible Amounts will be applied separately to each part of such **Claim**, but the sum of such Deductible Amounts shall not exceed the largest applicable Deductible Amount. Such Deductible Amount and Co-Insurance Amount shall be borne by the **Insureds** uninsured and at their own risk.

(2) As applicable to the Directors and Officers Liability Coverage Section, if purchased, the Deductible Amount set forth in Item 4(A) and the Co-Insurance Amount set forth in Item 6 of the Declarations for such **Liability Coverage Section** shall apply to **Loss** incurred by any **Insured Person** for which the **Insured Organization** is not permitted by common or statutory law to indemnify, or is permitted or required to indemnify, but is not able to do so by reason of **Financial Impairment**.

(3) If the **Insured Organization** is permitted or required by common or statutory law to indemnify the **Insured Persons** for any **Loss**, or to advance **Defense Costs** on their behalf, under any **Liability Coverage Section** and fails or refuses to do so other than for reasons of **Financial Impairment**, then the **Insured Organization** shall reimburse and hold harmless the **Company** for the **Company's** payment or advancement of such **Loss** up to the amount of the applicable Deductible Amount or Co-Insurance Amount.

(4) In the event that:

(a) a final adjudication with prejudice pursuant to a trial, motion to dismiss or a motion for summary judgment of any **Claim**; or

(b) a complete and final settlement with prejudice of any **Claim**;

establishes that none of the **Insureds** in such **Claim** are liable for any **Loss**, no Deductible Amount shall apply to **Defense Costs** incurred in connection with any such **Claim**, and the **Company** will reimburse the **Insureds** for any covered **Defense Costs** paid by the **Insureds** within the Deductible Amount otherwise applicable to such **Claim**; subject to paragraph (2) above and provided that this paragraph (4) shall not apply to any (i) **Employment Claim** or **Third Party Claim** which is not a class action, or (ii) **Professional Services Claim** (as such terms are defined in the applicable **Liability Coverage Sections**).

(B) Solely with respect to any **Non-Liability Coverage Section**:

(1) The **Company** shall pay loss that exceeds the amount of recoveries made prior to such payment, less the Deductible Amount set forth in the Declarations for the applicable **Non-Liability Coverage Section**.

(2) If the **Insured** receives payment under another policy or bond, after applying a deductible, for loss also covered hereunder, then the Deductible Amount set forth in the Declarations for the applicable **Non-Liability Coverage Section** shall be reduced by the deductible previously applied to such loss.

VII. REPORTING

(A) Solely with respect to any **Liability Coverage Section**:

(1) Any **Insured** shall, as a condition precedent to exercising their rights under any **Liability Coverage Section**, give to the **Company** written notice as soon as practicable of any **Claim**.

(2) If during the **Policy Period**, or any applicable Extended Reporting Period, an **Insured** becomes aware of a **Potential Employment Claim** or **Potential Third Party Claim** which could give rise to any **Employment Claim** or **Third Party Claim** (as such terms are defined in the Employment Practices Liability Coverage Section) or becomes aware of circumstances which could give rise to any **Claim**, other than an **Employment Claim** or a **Third Party Claim** (as such terms are defined in the Employment Practices Liability Coverage Section), and gives written notice of such **Potential Employment Claim**, **Potential Third Party Claim** or circumstances to the **Company** as soon as practicable thereafter but before the expiration or cancellation of this Policy, then any **Claim** subsequently arising from such **Potential Employment Claim**, **Potential Third Party Claim** or circumstances shall be considered to have been made against the **Insured** during the **Policy Year** in which the **Potential Employment Claim**, **Potential Third Party Claim** or circumstances were first reported to the **Company**.

(3) All **Insureds** shall, as a condition precedent to exercising their rights under this Policy, give to the **Company** such information and cooperation as it may reasonably require, including but not limited to a description of the **Claim**, **Potential Employment Claim**, **Potential**, **Third Party Claim** or circumstances, the nature of the alleged **Wrongful Act**, the nature of the alleged or potential damage, the names of the actual or potential claimants, and the manner in which such **Insured** first became aware of the **Claim**, **Potential Employment Claim**, **Potential Third Party Claim** or circumstances.

(4) All **Related Claims** will be treated as a single **Claim** made when the earliest of such **Related Claims** was first made, or when the earliest of such **Related Claims** is treated as having been made in accordance with paragraphs (2) and (3) above.

(B) Solely with respect to any **Non-Liability Coverage Section**, reporting of a **Coverage Event** shall be in accordance with the applicable Proof of Loss and Legal Proceedings Section of each Coverage Section.

VIII. NOTICE

(A) Any notice to the **Company** with respect to any Coverage Section shall designate the Coverage Section under which the notice is being given and shall be treated as notice under only the Coverage Section(s) so designated.

(B) All notices to the **Company** under this Policy of **Claims**, **Potential Employment Claims, Potential Third Party Claims** or circumstances under any **Liability Coverage Section** or of **Coverage Events** under any **Non-Liability Coverage Section** shall be given in writing addressed to:

Attn: Claims Department
Chubb Group of Insurance Companies
82 Hopmeadow St.
Simsbury, CT 06070-7683

Notice of **Claims** under any **Liability Coverage Section** or of **Coverage Events** under any **Non-Liability Coverage Section** may also be given in writing to a licensed agent of the **Company** in the state of New York, with particulars sufficient to identify the person or entity entitled to coverage under this Policy. Such notice will be deemed notice to the **Company**.

(C) All other notices to the **Company** under this Policy shall be given in writing addressed to:

Attn: Underwriting
Chubb Group of Insurance Companies
82 Hopmeadow St.
Simsbury, CT 06070-7683

(D) Any such notice shall be effective on the date of receipt by the **Company** at such address.

(E) Failure by any **Insured** to give any notice required within any prescribed time will not invalidate any coverage that would have been available if it is shown that it was not reasonably possible to give such notice within the prescribed time, and that notice was given as soon as reasonably possible.

IX. DEFENSE AND SETTLEMENT

(A) Solely with respect to any **Liability Coverage Section**:

(1) The **Company** shall have the right and duty to defend any **Claim** covered by this Policy and shall have the sole right and duty to select counsel for the defense of any such **Claim** and such counsel shall be chosen from the **Company's** list of approved counsel. The **Parent Corporation** shall have the right to consent to the **Company's** choice of defense counsel, which consent shall not be unreasonably withheld, and to participate and assist in the direction of the defense of any **Claim**. If the **Parent Corporation** reasonably withholds its consent to the **Company's** choice of defense counsel for a particular **Claim**, the **Parent Corporation** may choose defense counsel from the **Company's** list of approved counsel. Coverage shall apply even if any of the allegations are groundless, false or fraudulent. The **Company's** duty to defend any **Claim** shall cease upon exhaustion of the applicable Limit of Liability.

(2) The **Company** may make any investigation it deems necessary and may, with the consent of the **Insured**, make any settlement of any **Claim** it deems expedient. If any **Insured** withholds consent to any settlement acceptable to the claimant in accordance with the **Company's** recommendation (a "Proposed Settlement"), Section VI Deductible Amount (A)(4) shall not apply and the **Company's** liability for all **Loss**, including **Defense Costs**, from such **Claim** shall not exceed:

(a) the amount of the Proposed Settlement plus **Defense Costs** incurred up to the date of the **Insured's** refusal to consent to Proposed Settlement of such **Claim**; plus;

(b) seventy percent (70%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in paragraph (a) above, incurred in connection with such **Claim**; subject in all events to the applicable Deductible Amount and the available Limit of Liability set forth in the applicable Declarations. The remaining thirty percent (30%) of any **Loss**, including **Defense Costs**, in excess of the amount referenced in paragraph (a) above will be borne by the **Insured** uninsured and at its own risk, notwithstanding anything to the contrary contained in Section X Allocation.

(3) No **Insured** shall settle any **Claim**, incur any **Defense Costs**, or otherwise assume any contractual obligation or admit any liability with respect to any **Claim** without the **Company's** written consent, which shall not be unreasonably withheld. The **Company** shall not be liable for any settlement, **Defense Costs**, assumed obligation or admission to which it has not consented.

(4) The **Company** will have no obligation to pay **Loss**, including **Defense Costs**, or to defend or continue to defend any **Claim** after the **Company's** applicable Limit of Liability with respect to such **Claim** has been exhausted by the payment of **Loss**. If the **Company's** Limit of Liability is exhausted by the payment of **Loss** prior to the expiration of this Policy, the Policy premium will be deemed fully earned.

(5) If the combined maximum aggregate Limit of Liability is purchased as set forth in Item 3 of the Declarations of these General Terms and Conditions, then the **Company** will have no obligation to pay **Loss**, including **Defense Costs**, or to defend or continue to defend any **Claim** after the **Company's** combined maximum aggregate Limit of Liability has been exhausted by the payment of **Loss**. If the **Company's** combined maximum aggregate Limit of Liability is exhausted by the payment of **Loss** prior to the expiration of this Policy, the Policy premium will be deemed fully earned.

(B) With respect to all Coverage Sections:

The **Insureds** agree to provide the **Company** with all information, assistance and cooperation which the **Company** reasonably requests and agree they will do nothing that may prejudice the **Company's** position or its potential or actual rights of recovery.

(C) Solely with respect to any **Liability Coverage Section**:

(1) If the **Company** concludes that, based on any **Claim** which has been reported to the **Company** and to which this Policy may apply, the applicable Limit of Liability is likely to be exhausted by the payment of judgments or settlements, the **Company** will notify the **Parent Corporation**, in writing, to that effect.

(2) When the applicable Limit of Liability has been exhausted by the payment of judgments, settlements and/or **Defense Costs**:

(a) The **Company** will notify the **Parent Corporation**, in writing, as soon as practicable, that such Limit of Liability has been exhausted and that the **Company's** duty to defend any **Claim** subject to that limit has also ended;

(b) The **Company** will initiate and cooperate in the transfer of control, to any appropriate **Insured**, of all **Claims** which are subject to the Limit of Liability and which are reported to the **Company** before the Limit of Liability is exhausted. The **Insured** must cooperate in the transfer of control of such **Claims**;

(c) The **Company** agrees to take such steps, as deemed appropriate, to avoid default in, or to continue the defense of, such **Claims** until such transfer is completed, provided the appropriate **Insured** is cooperating in completing such transfer;

(d) The **Company** will take no action whatsoever with respect to any **Claim** that would have been subject to the Limit of Liability, had it not been exhausted, if the **Claim** is reported to the **Company** after the Limit of Liability has been exhausted; and

(e) The **Parent Corporation** will reimburse the **Company** for expenses incurred in taking steps deemed appropriate in accordance with paragraph (2)(b) above.

(3) The duty of the **Parent Corporation** to reimburse the **Company** will begin on:

(a) the date on which the Limit of Liability is exhausted, if the **Company** sent notice in accordance with paragraph (1) above; or

(b) the date on which the **Company** sent notice in accordance with paragraph (2)(a) above, if the **Company** fails to send notice in accordance with paragraph (1) above.

(4) The exhaustion of the Limit of Liability by the payment of judgments or settlements, and the resulting termination of the **Company's** duty to defend, will not be affected by the **Company's** failure to comply with any of the provisions of this Section (C).

X. ALLOCATION

If, in any **Claim** under a **Liability Coverage Section**, the **Insureds** who are afforded coverage for such **Claim** incur an amount consisting of both **Loss** that is covered by this Policy and also loss that is not covered by this Policy because such **Claim** includes both covered and uncovered matters or covered and uncovered parties, then coverage shall apply as follows:

(1) **Defense Costs**: one hundred percent (100%) of reasonable and necessary **Defense Costs** incurred by such **Insured** from such **Claim** will be considered covered **Loss**; and

(2) loss other than **Defense Costs**: all remaining loss incurred by such **Insured** from such **Claim** will be allocated between covered **Loss** and uncovered loss based upon the relative legal exposures of the parties to such matters.

XI. CHANGES IN EXPOSURE

(A) Acquisition of Another Organization

(1) If any **Insured Organization** acquires another entity or merges with another entity (each an "Acquired Organization") such that the **Insured Organization** is the surviving entity, and if as a result of such acquisition or merger the Acquired Organization would otherwise become a **Subsidiary**, then coverage shall be provided for such Acquired Organization and its **Insureds**, with respect to any:

(a) **Liability Coverage Section**: solely for **Wrongful Acts** committed or allegedly committed after the effective date of such event; or

(b) **Non-Liability Coverage Section**: after the effective date of such event, pursuant to the Liability for Prior Losses Section of any such **Non-Liability Coverage Section**.

(2) If, at the time of an event described in paragraph (1) above:

(a) the assets under management by, or the assets of, the Acquired Organization exceed twenty-five percent (25%) of the total assets under management by or the total assets of, the **Insured Organization** as reflected in the **Parent Corporation's** then most recent audited consolidated financial statements; or

(b) solely with respect to the Employment Practices Liability Coverage Section, if purchased as set forth in Item 4 of the Declarations of these General Terms and Conditions, the total number of employees of the Acquired Organization exceeds twenty-five percent (25%) of the total number of employees of the **Insured Organization** immediately prior to such event;

then the **Parent Corporation** shall provide to the **Company** written notice of the event containing full details thereof, as soon as practicable, and the **Company**, in its sole discretion, may require additional terms, conditions and limitations of coverage and additional premium shall be paid.

(B) Cessation of Subsidiaries

If any **Subsidiary** ceases to be a **Subsidiary** before or during the **Policy Period**, then with respect to any:

(1) **Liability Coverage Section**: coverage under this Policy shall continue for such **Subsidiary** and its **Insureds** until the expiration of the **Policy Period** and any applicable Extended Reporting Period, but solely for **Claims** for **Wrongful Acts** committed or allegedly committed prior to the effective date of such cessation; or

(2) **Non-Liability Coverage Sections**: such **Subsidiary** and its **Insureds** cease to be **Insureds** as of the effective date of such cessation, and coverage under this Policy shall apply as provided in such **Non-Liability Coverage Section**.

(C) Conversion of Coverage under Certain Circumstances

If, during the **Policy Period**, any of the following events occur:

(1) the acquisition of all or substantially all of the **Parent Corporation's** assets, by another organization, person or group of organizations or persons acting in concert, or the merger or consolidation of the **Parent Corporation** into or with another entity such that the **Parent Corporation** is not the surviving entity; or

(2) another organization, person or group of organizations or persons acting in concert acquires securities or voting rights which results in ownership or voting control by the other organization(s) or person(s) of more than fifty percent (50%) of the outstanding securities representing the present right to vote for the election of directors, trustees, members of the Board of Managers or management committee members of the **Parent Corporation**;

this Policy shall, with respect to:

(a) any **Liability Coverage Section**: terminate, upon cancellation of such **Liability Coverage Sections** by the **Company** in accordance with Section XIX Termination of Policy of these General Terms and Conditions. Thereafter, the **Insureds** will have such rights to automatic and additional Extended Reporting Periods as provided in Section IV Extended Reporting Period of these General Terms and Conditions. The amount of any unearned premium may, at the option of the **Parent Corporation**, be applied toward the additional premium for any additional Extended Reporting Period that is purchased by the **Parent Corporation**;

(b) any **Non-Liability Coverage Section**: terminate, upon cancellation of such **Non-Liability Coverage Sections** by the **Company** in accordance with Section XIX Termination of Policy of these General Terms and Conditions.

The **Parent Corporation** shall give written notice of such event to the **Company** as soon as practicable, but no later than sixty (60) days after such event, together with such information as the **Company** may require.

XII. REPRESENTATIONS AND SEVERABILITY

(A) In granting coverage to the **Insureds** under this Policy, the **Company** has relied upon the declarations and statements in the written application(s) for this Policy. Such declarations and statements are the basis of the coverage under this Policy and shall be considered as incorporated in and constituting part of this Policy.

(B) Solely with respect to any **Liability Coverage Section(s)**, any written application(s) for coverage shall be construed as a separate application(s) for coverage by each **Insured Person**. With respect to the declarations and statements in such application(s):

(1) no fact pertaining to or knowledge possessed by any **Insured Person** shall be imputed to any other **Insured Person** for the purpose of determining if coverage is available; and

(2) only facts pertaining to and knowledge possessed by the Chief Financial Officer, President, Chief Executive Officer or Chairperson of any **Insured Organization** or any other individual signing such application(s) shall be imputed to any **Insured Organization** for the purpose of determining if coverage is available.

XIII. VALUATION AND FOREIGN CURRENCY

All premiums, limits, deductibles, loss and other amounts under this Policy are expressed and payable in the currency of the United States of America. Except as otherwise provided in any Coverage Section, if a judgment is rendered, a settlement is denominated or any element of loss under this Policy is stated in a currency other than United States of America dollars, payment under this Policy shall be made in United States of America dollars at the rate of exchange published in *The Wall Street Journal* on the date the final judgment is reached, the amount of the settlement is agreed upon or any element of loss is due, respectively.

XIV. SUBROGATION

In the event of any payment under this Policy, the **Company** shall be subrogated to the extent of such payment to all the **Insured's** rights of recovery, and such **Insured** shall execute all papers required and shall do everything necessary to secure and preserve such rights, including the execution of such documents necessary to enable the **Company** effectively to bring suit or otherwise pursue subrogation rights in the name of such **Insured**.

XV. RECOVERIES

(A) Recoveries of loss with respect to any **Claim** or **Coverage Event**, whether effected by the **Company** or by an **Insured**, less the cost of recovery, shall be distributed as follows:

(1) first, to an **Insured** for the amount of such loss, otherwise covered, in excess of the applicable Limits of Liability;

(2) second, to the **Company** for the amount of such loss paid to an **Insured** as covered **Loss**;

(3) third, to an **Insured** for the Deductible Amount applicable to such loss;

(4) fourth, to an **Insured** for the amount of such loss excluded under this Policy.

(B) Recovery from reinsurance or indemnity of the **Company** shall not be deemed a recovery hereunder.

XVI. ACTION AGAINST THE COMPANY

No action may be taken against the **Company** unless, as a condition precedent thereto, there shall have been full compliance with all the terms of this Policy. No person or entity shall have any right under this Policy to join the **Company** as a party to any action against any **Insured** to determine such **Insured's** liability nor shall the **Company** be impleaded by such **Insured** or legal representatives of such **Insured**.

If judgment against any **Insured** remains unsatisfied thirty (30) days after the serving of notice of entry of judgment upon such **Insured** (or his, her or its attorney) and upon the **Company**, then, except during a stay or limited stay of execution against such **Insured** on such judgment, an action may be maintained against the **Company** under this Policy for the amount of such judgment. Nothing herein is intended, however, nor shall it be construed, to obligate the **Company** to make any payment it would not otherwise be obligated to make under the terms,

conditions, limitations and endorsements of this Policy, or to pay any **Loss** in excess of the then-available applicable Limit of Liability under this Policy.

XVII. PARENT CORPORATION RIGHTS AND OBLIGATIONS

By acceptance of this Policy, the **Parent Corporation** is considered the sole agent of and will act on behalf of each **Insured** with respect to: the payment of premiums and the receiving of any return premiums that may become due under this Policy; the negotiation, agreement to and acceptance of endorsements; the giving or receiving of any notice, including Notice of Claim or Proof of Loss (except the giving of notice to apply for the Extended Reporting Period); the adjustment of the amount of **Loss** submitted; the giving of written notice of termination and the receipt or enforcement of payment of a **Loss**; and the **Parent Corporation** shall be responsible for application of any such payment, as provided for in this Policy, and each **Insured** agrees that the **Parent Corporation** shall act on their behalf.

XVIII. ALTERATION AND ASSIGNMENT

No change in, modification of, or assignment of interest under this Policy shall be effective except when made by written endorsement to this Policy which is signed by an authorized employee of Chubb, a division of Federal Insurance Company.

XIX. TERMINATION OF POLICY

(A) This Policy shall terminate at the earliest of the following times:

(1) if terminated during the first sixty (60) days this Policy is in effect, twenty (20) days after the **Company** mails or delivers to the **Parent Corporation** written notice of termination from the **Company**;

(2) if terminated after this Policy has been effect for sixty (60) days, fifteen (15) days after the **Company** mails or delivers to the **Parent Corporation** written notice of termination from the **Company** for one or more of the following reasons:

(a) nonpayment of premium;

(b) conviction of a crime arising out of an act increasing the hazard for which coverage is provided;

(c) fraud or material misrepresentation in obtaining this Policy or in the presentation of a claim or loss under this Policy;

(d) discovery of an act or omission, or a violation of any Policy condition, that substantially and materially increases the hazard for which coverage is provided, and which occurred subsequent to the inception of the current **Policy Period**;

(e) material physical change in any property for which coverage is provided or material change in the nature or extent of the risk;

(f) determination by the superintendent of insurance that the continuation of this Policy would violate, or would place the **Company** in violation of, any provision of the New York Insurance Laws; or

(g) where the **Company** has reason to believe, in good faith and with sufficient cause, that there is a probable risk or danger that the **Insured** will destroy, or permit to be destroyed, property for which coverage is provided for the purpose of collecting insurance proceeds; or

(3) upon the effective date of termination by the **Parent Corporation**; provided that, the **Company** receives written notice of termination from the **Parent Corporation** before such effective date;

(4) at such other time as may be agreed upon by the **Company** and the **Parent Corporation**; or

(5) upon expiration of the **Policy Period** as set forth in Item 2(B) of the Declarations of these General Terms and Conditions, or any extension thereof, if either the **Parent Corporation** or the **Company** does not renew this Policy. If the **Company** does not renew this Policy, it will provide notice of nonrenewal as set forth in paragraph (C) of this Section XIX.

(B) The **Company** shall refund the unearned premium computed at customary short rates if this Policy is terminated by the **Parent Corporation**. Under any other circumstances the refund shall be computed pro rata. Payment or tender of any unearned premium by the **Company** shall not be a condition precedent to the effectiveness of such termination, but such payment shall be made as soon as practicable.

(C) If the **Company** (a) non-renews this Policy, or (b) conditions its renewal upon a change in limits, change in the type of coverage, reduction of coverage, increased Deductible Amounts or retentions or addition of exclusions, or upon increased premiums in excess of ten percent (10%) of the expiring rate (exclusive of premiums attributable to increased exposure subsequent to issuance of this Policy or at the request of the **Parent Corporation** or as a result of experience rating or retrospective rating), the **Company** shall provide notice to the **Parent Corporation** as follows.

(1) The **Company** will mail or deliver to the **Parent Corporation** between sixty (60) days and one hundred twenty (120) days advance written notice containing the specific reason or reasons for non-renewal or conditional renewal, the amount of any premium increase, the nature of any other proposed changes and the **Parent Corporation's** rights, if any, to coverage and the duration of such coverage. Such notice will not be provided in the event that the **Parent Corporation** or its agent or broker of record has mailed or delivered written notice that this Policy has been replaced or is no longer desired. Additionally, if the **Company** provides notice of nonrenewal and subsequently extends the **Policy Period** for ninety (90) days or less, no additional notice of nonrenewal will be given.

(2) If before the expiration date in ITEM 2(B) of the Declarations of these General Terms and Conditions the **Company** provides an incomplete or late conditional renewal notice, coverage hereunder will remain in effect on the same terms and conditions and at the lower of the current rates or the rates for the prior period until sixty (60) days after proper notice is mailed, unless the **Parent Corporation** elects to cancel sooner. If, however, the **Parent Corporation** elects to accept the terms, conditions and rates of the conditional renewal notice and renews this Policy on that basis, then such terms, conditions and

rates will govern upon: (a) the expiration of such sixty (60) day period, if notice of conditional renewal was provided to the **Parent Corporation** less than thirty (30) days before the Policy expiration date; or (b) the Policy expiration date, if notice of conditional renewal was provided to the **Parent Corporation** at least thirty (30) days before the Policy expiration date.

(3) If the **Policy Period** is extended due to late notice of nonrenewal or conditional renewal, then the applicable aggregate Limit(s) of Liability will be increased in proportion to the period for which the **Policy Period** is extended, provided that if the **Parent Corporation** accepts the terms, conditions and rates of a conditional renewal notice, such increase will be inapplicable and, instead, new aggregate limit(s) of liability applicable to the renewal period shall become effective as of the inception date of the renewal policy.

(4) If the **Company** does not provide notice of nonrenewal or conditional renewal before the Policy expiration date set forth in ITEM 2(B) of the Declarations of these General Terms and Conditions, then the **Parent Corporation** may purchase coverage on the same terms and conditions as this Policy for another **Policy Year** at the lower of the premium rates for such new **Policy Year** or for the immediately preceding **Policy Year**.

(D) The **Company** shall mail or deliver a copy of any notice of nonrenewal or termination of this Policy by the **Company** to the agent or broker of record, if any, at its last address known to the **Company**.

(E) Any notice of nonrenewal or termination of this Policy by the **Company** shall state the specific reason(s) for, and the effective date of, such nonrenewal or termination.

XX. TERMINATION OF PRIOR BONDS OR POLICIES

Any prior bonds or policies issued by the **Company** or its affiliates and specified in Item 6 of the Declarations of these General Terms and Conditions shall terminate, if not already terminated, as of the inception of this Policy.

XXI. BANKRUPTCY

Bankruptcy or insolvency of any **Insured** or any **Insured's** estate shall not relieve the **Company** of its obligations nor deprive the **Company** of its rights or defenses under this Policy.

XXII. HEADINGS

The descriptions in the headings and sub-headings of this Policy are solely for convenience, and form no part of the terms and conditions of coverage.

Schedule of Forms

To be attached to and form part of Policy No. 8251-8561

Company: Federal Insurance Company

Issued to: Cancer Care, Inc.

ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

14-02-11260 (6/05 ed.)

14-02-13179 (5/07 ed.)

14-02-14839 (10/17 ed.)

14-02-19952 (5/13 ed.)

14-02-22814 (12/17 ed.)

14-02-7280 (9/02 ed.)

14-02-9228 (2/10 ed.)

ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

14-02-12112 (6/06 ed.)

14-02-13776 (10/16 ed.)

14-02-19669 (8/14 ed.)

14-02-21174 (5/14 ed.)

14-02-9297 (5/04 ed.)

ALL-317454 (3/21 ed.)

FL-261169NY (11/18 ed.)

PF-233260NY (1/19 ed.)

ENDORSEMENT

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement: July 26, 2025

Company: Federal Insurance Company

Endorsement No. 1

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

DOMESTIC PARTNER COVERAGE ENDORSEMENT

In consideration of the premium charged, it is agreed that:

(1) The definition of **Insured Person** in Section II General Definitions (I) of these General Terms and Conditions is amended to read in its entirety as follows:

Insured Person shall have the meaning ascribed to that term in each Coverage Section. Solely with respect to any **Liability Coverage Section**, coverage for an **Insured Person** shall also include coverage for:

(1) the lawful spouse or **Domestic Partner** of such **Insured Person**, if named as a co-defendant with such **Insured Person** solely by reason of such spouse's or **Domestic Partner's** status as a spouse or **Domestic Partner**, or such spouse's or **Domestic Partner's** ownership interest in property which is sought by the claimant as recovery for an alleged **Wrongful Act** of such **Insured Person**; and

(2) in the event of the death, incapacity or bankruptcy of an **Insured Person**, the estate, heirs, legal representatives or assigns of such **Insured Person**;

but any such coverage shall apply only with respect to a **Wrongful Act** of such **Insured Person**. All terms and conditions of this coverage section, including without limitation the Deductible Amount, applicable to **Loss** incurred by the **Insured Person**, shall also apply to loss incurred by such spouses or Domestic Partners, estates, heirs, legal representatives and assigns of such **Insured Person**.

(2) For purposes of this Endorsement, **Domestic Partner** means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state or local law or under the provisions of any formal program established by the **Insured Organization**.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 2

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

AMEND DEFENSE AND SETTLEMENT ENDORSEMENT

In consideration of the premium charged, it is agreed that with respect to any **Liability Coverage Section**, subparagraph (2) of paragraph (A) of Subsection IX., Defense and Settlement, of these General Terms and Conditions, is deleted and replaced with the following:

(2) The **Company** may make any investigation it deems necessary and may, with the consent of the **Insured**, make any settlement of any **Claim** it deems expedient.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 3

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

NEW YORK AMENDATORY ENDORSEMENT – LATE NOTICE

In consideration of the premium charged, it is agreed that:

(1) Subject to the terms and conditions of this policy, failure to provide notice of a **Claim** pursuant to the reporting and/or notice provisions of this policy shall not invalidate any coverage that would have otherwise been available unless the failure to provide such timely notice has prejudiced the Company; except as provided in paragraph (2) below.

(2) Failure to provide notice of a **Claim** pursuant to the reporting and/or notice provisions of this policy shall not invalidate any coverage if it is shown that it was not reasonably possible to give such notice to the Company within the prescribed time, and that such notice was given as soon as reasonably possible thereafter.

(3) The burden of proving prejudice for failure to provide timely notice shall be on:

(a) the Company if the notice was provided within two (2) years of the time required under this policy; or

(b) the **Insured,** injured person, or claimant if the notice was provided more than two (2) years after the time required under this policy.

(4) Notwithstanding the above paragraph, an irrebuttable presumption of prejudice shall apply if, prior to notice:

(a) the **Insured's** liability has been determined by a court of competent jurisdiction or by binding arbitration; or

(b) the **Insured** has entered into any settlement or other compromise.

(5) Except as expressly set forth in this endorsement, nothing herein shall be construed:

(a) to amend provisions in the policy stating that claims shall be made during the **Policy Period**, any renewal thereof, or any extended reporting period; or

(b) to duplicate coverage under multiple policy periods.

(6) With respect to a **Claim** for death or personal injury, as that term is defined by the New York Insurance Law, if the Company disclaims liability or denies coverage based upon the failure to provide timely notice, then, notwithstanding any other provision in this policy, the injured person or other claimant may maintain an action directly against the Company. In such an action, the sole question will be the Company's disclaimer or denial based on the failure to provide timely notice, unless within sixty (60) days of such disclaimer or denial, the Company or the **Insured**:

(a) initiate an action to declare the rights of the parties under this policy; and

(b) name the **Insured** as a party to such action.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 4

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

NEW YORK AMENDATORY ENDORSEMENT

In consideration of the premium charged, it is agreed that:

1. Any reference in the policy to the Superintendent of Insurance is hereby deleted and replaced with the Superintendent of Financial Services.

2. Any reference in the policy to the Insurance Department is hereby deleted and replaced with the Department of Financial Services.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 5

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

In consideration of the premium charged, it is agreed that:

A. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed $100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds $100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

B. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any "loss" that is otherwise excluded under this Policy.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement: July 26, 2025

Company: Federal Insurance Company

Endorsement No. 6

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

NEW YORK AMENDATORY ENDORSEMENT
Addendum to the Application, Declarations and Policy

NOTICE

The "Liability Coverage Sections" (defined as the Directors and Officers Liability Coverage Section, the Employment Practices Liability Coverage Section, the Fiduciary Liability Coverage Section, the Miscellaneous Professional Liability Coverage Section and the Internet Liability Coverage Section) of the Policy are written on a claims-made basis. As such, there are several items which, according to the laws of the State of New York, must be disclosed to prospective insureds considering the purchase of claims made policies or coverages.

PRIOR ACTS: If a claims made coverage section contains a retroactive date, that coverage section provides no coverage for claims arising out of incidents, occurrences or alleged wrongful acts which took place prior to that retroactive date.

CLAIMS MADE DURING POLICY PERIOD: Claims made coverage covers only claims actually made or incidents reported against the insured while the applicable coverage section remains in effect or any applicable extended reporting period. All coverage under each coverage section ceases upon the termination date, except for the automatic extended reporting period coverage, unless the insured purchases additional extended reporting period coverage.

EXTENDED REPORTING PERIOD: The Policy provides an automatic extended reporting period of sixty (60) days from the termination or expiration date of the applicable Liability Coverage Section of the Policy. The insured is entitled under New York regulation to purchase an additional extended reporting period of one (1) year for the Directors & Officers Liability Coverage Section (provided that the Parent Corporation is a for-profit entity), the Fiduciary Liability Coverage Section and the Employment Practices Liability Coverage Section. The insured is entitled under New York regulation to purchase an additional extended reporting period of three (3) years for the Directors & Officers Liability Coverage Section if the Parent Corporation is a not-for-profit organization, and for the Miscellaneous Professional Liability Coverage Section and the Internet Liability Coverage Section. If an additional extended reporting period is purchased, the charge for such extended reporting period shall be the percentage of the current policy premium set forth in the "Extended Reporting Period" item of the Declarations to the General Terms and Conditions Section of the policy. If an additional extended reporting period is not purchased and the subsequent policy does not provide full prior acts coverage or is an occurrence policy, there may be gaps in coverage. Because an unlimited extended reporting period is not available under the Policy, if an additional extended reporting period is purchased, there may be potential gaps in coverage after the expiration of the additional extended reporting period.

CLAIMS MADE POLICY MATURITY: When the retroactive date on a claims made policy is concurrent with the effective date of the policy or less than five years prior to the effective date, there is considered to be a reduced level of exposure in relation to an occurrence policy. For this reason, claims-made rates are comparatively lower than occurrence rates. As the claims-made relationship matures, the insured can expect substantial annual premium increases independent of overall rate level increases. If, however, the retroactive date on a claims-made policy is more than five years prior to the effective date of the policy, that claims-made relationship is considered mature and rate levels will not increase for this reason.

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio General Terms and Conditions Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 7

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

COMPLIANCE WITH APPLICABLE TRADE SANCTION LAWS

It is agreed that this insurance does not apply to the extent that trade or economic sanctions or other similar laws or regulations prohibit the coverage provided by this insurance.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

DECLARATIONS

FEDERAL INSURANCE COMPANY
a stock insurance company, incorporated under the laws of Indiana, herein called the **Company.**

READ THE ENTIRE POLICY CAREFULLY.

Item 1. Parent Corporation:

Cancer Care, Inc.
485 Madison Avenue
New York, NY 10022

Item 2. Coverage is only available for the following if indicated by X:

Insuring Clauses	Limits of Liability	Deductible Amount
(A) [X] Employee Theft: Insuring Clause (A):	$2,000,000.00	$5,000.00
(B) [X] Premises: Insuring Clause (B):	$2,000,000.00	$5,000.00
(C) [X] In Transit: Insuring Clause (C):	$2,000,000.00	$5,000.00
(D) [X] Forgery: Insuring Clause (D):	$2,000,000.00	$5,000.00
(E) [X] Computer Fraud: Insuring Clause (E):	$2,000,000.00	$5,000.00
(F) [X] Funds Transfer Fraud: Insuring: Clause (F):	$2,000,000.00	$5,000.00
(G) [X] Money Order And Counterfeit Currency Fraud: Insuring Clause (G):	$2,000,000.00	$5,000.00
(H) [X] Credit Card Fraud: Insuring Clause (H):	$2,000,000.00	$5,000.00
(I) [X] Client Coverage: Insuring Clause (I):	$2,000,000.00	$5,000.00
(J) [X] Expense Coverage: Insuring Clause (J):	$10,000.00	Not Applicable

Item 3. Coverage only applies as indicated by X.

(A) [ ] Loss Sustained; or

(B) [X] Loss Discovered

In consideration of payment of the premium and subject to the Declarations, General Terms and Conditions, and the limitations, conditions, provisions and other terms of this Coverage Section, the Company and the Insureds agree as follows:

I. INSURING CLAUSES

(A) Employee Theft Coverage

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from **Theft** or **Forgery** committed by an **Employee** acting alone or in collusion with others.

(B) Premises Coverage

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from:

(1) **Robbery**; **Safe Burglary**; or unlawful taking of **Money** or **Securities**; by a **Third Party**; or

(2) actual destruction or disappearance of **Money** or **Securities**;

within or from the **Premises** or **Banking Premises**. Coverage under this Insuring Clause shall also include:

(a) loss of or damage to **Property** by **Robbery** or attempted **Robbery** within the **Premises**;

(b) loss of or damage to such **Property** contained within any safe which results from **Safe Burglary** or attempted **Safe Burglary** within the **Premises**;

(c) damage to a locked safe, cash drawer, cash box or cash register within the **Premises** by felonious entry or attempted felonious entry or loss by felonious abstraction of such container from within the **Premises**; and

(d) damage to the **Premises** resulting from **Safe Burglary** or **Robbery**;

committed by a **Third Party**.

(C) In Transit Coverage

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from:

(1) **Robbery**; or unlawful taking of **Money** or **Securities**; by a **Third Party**; or

(2) actual destruction or disappearance of **Money** or **Securities**;

while **In Transit** or while temporarily within the home of an **Employee** or a partner of an **Insured Organization**. Coverage under this Insuring Clause shall also include:

(a) damage to **Property** by **Robbery** while **In Transit**; and
(b) loss by the unlawful taking of **Property** temporarily within the home of an **Employee** or a partner of an **Insured Organization**;

committed by a **Third Party**.

(D) **Forgery Coverage**

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from **Forgery** or alteration of a **Financial Instrument** committed by a **Third Party**.

(E) **Computer Fraud Coverage**

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from **Computer Fraud** committed by a **Third Party**.

(F) **Funds Transfer Fraud Coverage**

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from **Funds Transfer Fraud** committed by a **Third Party**.

(G) **Money Orders And Counterfeit Currency Fraud Coverage**

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from **Money Orders And Counterfeit Currency Fraud** committed by a **Third Party**.

(H) **Credit Card Fraud Coverage**

The **Company** shall pay the **Parent Corporation** for direct loss sustained by an **Insured** resulting from **Credit Card Fraud** committed by a **Third Party**.

(I) **Client Coverage**

The **Company** shall pay the **Parent Organization** for direct loss sustained by a **Client** resulting from **Theft** or **Forgery** committed by an **Employee** not in collusion with such **Client's** employees.

(J) **Expense Coverage**

If Expense Coverage is purchased, as set forth in Item 2(J) of the Declarations for this Coverage Section, the **Company** shall pay the **Parent Organization** for:

(1) **Investigative Expenses** resulting from any direct loss covered under Insuring Clauses (A) through (I); or

(2) **Computer Violation Expenses** resulting from any direct loss covered under Insuring Clauses (A), (E) or (I);

incurred by any **Insured Organization** in the amount set forth in Item 2(J) of the Declarations for this Coverage Section, solely if such covered direct loss is in excess of the Deductible Amount applicable to such covered direct loss. Such amount shall be part of and not in addition to the Limit of Liability applicable to such covered direct loss.

II. DEFINITIONS

For the purposes of this Coverage Section:

(A) **Banking Premises** means the interior portion of a building occupied by, or the night depository chute or safe maintained by, any bank, trust company or similar institution.

(B) **Client** means a customer of an **Insured Organization** to whom an **Insured Organization** provides goods or services under written contract or for a fee.

(C) **Computer Fraud** means the unlawful taking of **Money**, **Securities** or **Property** resulting from a **Computer Violation**.

(D) **Computer System** means a computer or network of computers, including its input, output, processing, storage and communication facilities, and shall include off-line media libraries.

(E) **Computer Violation** means an unauthorized:

(1) entry into or deletion of data from a **Computer System**;

(2) change to data elements or program logic of a **Computer System**, which is kept in machine readable format; or

(3) introduction of instructions, programmatic or otherwise, which propagate themselves through a **Computer System**;

directed solely against any **Insured Organization**.

(F) **Computer Violation Expenses** means reasonable expenses, other than an **Insured Organization's** internal corporate costs (such as employee remuneration), incurred by an **Insured Organization** with the **Company's** prior written consent to reproduce or duplicate damaged or destroyed electronic **Data** or computer programs. If such computer programs cannot be duplicated from other computer programs, then **Computer Violation Expenses** shall also include reasonable costs incurred for computer time, computer programmers, technical experts or consultants to restore the computer programs to substantially the same level of operational capability immediately preceding the covered direct loss. **Computer Violation Expenses** shall not include expenses incurred by any **Client**.

(G) **Credit Card Fraud** means the **Forgery** or alteration of, on or in, any written instrument required in connection with any credit card issued to an **Insured Organization** or at the request of an **Insured Organization**, to any partner, officer or **Employee** of an **Insured Organization**.

(H) **Data** means information contained in records, accounts, microfilms, tapes or other records, whether or not contained in a **Computer System**.

(I) **Discovery** or **Discovered** means knowledge acquired by an **Executive** or **Insurance Representative** of an **Insured** which would cause a reasonable person to believe a covered loss has occurred or an occurrence has arisen that may subsequently result in a covered loss. This includes loss:

(1) sustained prior to the inception date of any coverage under this Coverage Section;

(2) which does not exceed the Deductible Amount as set forth in the Declarations of this Coverage Section; or

(3) the exact amount or details of which are unknown.

Discovery or **Discovered** shall not include knowledge acquired by an **Executive** or **Insurance Representative** of an **Insured** acting alone or in collusion with an **Employee**, or the knowledge possessed by any **Executive** or **Insurance Representative** who is a participant in the **Theft** or **Forgery**.

(J) **Employee** means any:

(1) natural person in the regular service of an **Insured Organization** in the ordinary course of such **Insured Organization's** business, whom such **Insured Organization** governs and directs in the performance of such service, including any part-time, seasonal, leased and temporary employees as well as volunteers;

(2) **Executive** while performing acts within the scope of the usual duties of an **Employee**; or

(3) natural person fiduciary, trustee, administrator or **Employee** of a **Sponsored Plan** and any other natural person required to be bonded in connection with such **Sponsored Plan** by Title 1 of the Employee Retirement Income Security Act of 1974, as amended.

(K) **Executive** means any natural person specified below:

(1) duly elected or appointed directors, officers, members of the Board of Managers or management committee members of any **Insured Organization** incorporated in the United States of America;

(2) in–house general counsel of any **Insured Organization** incorporated in the United States of America; or

(3) equivalent positions of (1) or (2) above in any **Insured Organization** chartered in any other jurisdiction anywhere in the world.

(L) **Financial Instrument(s)** means checks, drafts or similar written promises, orders or directions to pay a sum certain in money, that are made, drawn by or drawn upon an **Insured Organization** or by anyone acting as an **Insured Organization's** agent, or that are purported to have been so made or drawn.

(M) **Forgery** means the signing of another natural person's name with the intent to deceive, but does not mean a signature that includes one's own name, with or without authority, in any capacity for any purpose. Mechanically or electronically produced or reproduced signatures shall be treated the same as hand-written signatures.

(N) **Funds Transfer Fraud** means fraudulent written, electronic, telegraphic, cable, teletype or telephone instructions issued to a financial institution directing such institution to transfer, pay or deliver **Money** or **Securities** from any account maintained by an **Insured Organization** at such institution, without an **Insured Organization's** knowledge or consent.

(O) **Insurance Representative** means an **Employee**, including a risk manager, designated to represent an **Insured** for the purpose of effecting and maintaining insurance.

(P) **Insured** means the **Insured Organization** and any **Sponsored Plan**.

(Q) **In Transit** means being conveyed outside the **Premises**, from one person or place to another, by the **Insured Organization** within the custody of:

(1) an **Employee** or a partner of an **Insured Organization**; or

(2) a person authorized by an **Insured Organization** to have custody of **Money**, **Securities** or **Property**.

Such conveyance begins immediately upon receipt of **Money**, **Securities** or **Property**, by the person(s) described in (1) or (2) above, from any **Insured Organization**, and ceases immediately upon delivery to the designated recipient or its agent.

(R) **Investigative Expenses** means reasonable expenses, other than an **Insured Organization's** internal corporate costs (such as employee remuneration), incurred by an **Insured Organization** with the **Company's** prior written consent to establish the existence and amount of a covered loss. **Investigative Expenses** shall not include expenses incurred by any **Client**.

(S) **Money** means currency, coin, bank notes and bullion.

(T) **Money Orders And Counterfeit Currency Fraud** means the good faith acceptance:

(1) in exchange for merchandise, **Money** or services, of any post office or express money order, issued or purporting to have been issued by any post office or express company, if such money order is not paid upon presentation; or

(2) in the regular course of business, of counterfeit United States of America or Canadian paper currency.

(U) **Premises** means the interior portion of a building occupied by an **Insured Organization** in conducting its business.

(V) **Property** means tangible property other than **Money** or **Securities**.

(W) **Robbery** means the unlawful taking of **Money**, **Securities** or **Property** from the custody of an **Employee**, or other person (except a person acting as a watchman, porter or janitor) authorized by an **Insured Organization** to have custody of such **Money**, **Securities** or **Property**, by violence or threat of violence, committed in the presence and cognizance of such person.

(X) **Safe Burglary** means the unlawful taking of **Money**, **Securities** or **Property** by forcible or violent entry evidenced by visible marks, from a locked vault or safe located within the **Premises**.

(Y) **Salary** means compensation an **Insured Organization** pays an **Employee**, including but not limited to bonus, commission, incentive payments, and the cost of health, welfare and pension benefits.

(Z) **Securities** means negotiable and non-negotiable instruments representing either **Money** or **Property**.

(A) **Sponsored Plan** means:

(1) any Employee Benefit Plan, Pension Benefit Plan, Welfare Benefit Plan, as each are defined in the Employee Retirement Income Security Act of 1974, as amended, which is operated solely by the **Insured Organization** or jointly by the **Insured Organization** and a labor organization for the benefit of the **Employees** of the **Insured Organization** located anywhere in the world and which existed on or before the inception of this Coverage Section or which is created or acquired after the inception of this Coverage Section;

(2) any other employee benefit plan or program not subject to Title 1 of the Employee Retirement Income Security Act of 1974, as amended, sponsored solely by the **Insured Organization** for the benefit of the **Employees**, including any excess benefit plan located anywhere in the world and which existed on or before the inception of this Coverage Section or which is created or acquired after the inception of this Coverage Section; or

(3) any other plan, fund, or program specifically included as a **Sponsored Plan** by endorsement to this Coverage Section.

Sponsored Plan shall not include any multi-employer plan.

(B) **Theft** means the unlawful taking of **Money**, **Securities** or **Property** to the deprivation of:

(1) an **Insured**, solely for the purposes of Insuring Clause (A); or

(2) a **Client**, solely for the purposes of Insuring Clause (I).

(C) **Third Party** means a person other than an **Insured** or **Employee**.

III. EXCLUSIONS

(A) No coverage will be available under this Coverage Section for:

(1) loss resulting directly or indirectly from any authorized or unauthorized trading of **Money**, **Securities** or **Property**, whether or not in the name of the **Insured** and whether or not in a genuine or fictitious account; provided that this Exclusion (A)(1) shall not apply to direct losses caused by **Theft** or **Forgery** which result in improper financial gain to an **Employee** (direct losses as used herein shall mean only the amount of improper financial gain to such **Employee**, which shall not include **Salary**, commissions, fees or other compensation, including but not limited to promotions and raises associated with employment, paid by the **Insured** to such **Employee**);

(2) loss of trade secrets, confidential processing methods or other confidential information of any kind;

(3) **Theft** or **Forgery** committed against an **Insured Organization** by a partner of such **Insured Organization** whether acting alone or in collusion with others; provided that, if **Theft** or **Forgery** committed by such partner would have resulted in a covered loss, the **Company** shall pay the amount which exceeds such partner's percentage ownership of the **Insured Organization**, on the day immediately preceding the date of **Discovery**, multiplied by the **Insured Organization's** total assets as reflected in such **Insured Organization's** most recent audited financial statements;

(4) loss due to declared or undeclared war, civil war, insurrection, rebellion or revolution, military, naval or usurped power, governmental intervention, expropriation or nationalization; or any act or condition incident to any of the foregoing;

(5) loss due to nuclear reaction, nuclear radiation or radioactive contamination;

(6) loss of income not realized as the result of a covered loss;

(7) indirect or consequential loss of any kind; provided that this Exclusion (A)(7) shall not apply to otherwise covered **Investigative Expenses** and **Computer Violation Expenses** under Insuring Clause (J);

(8) expenses incurred:

(a) as a result of the reconstitution of **Data** if an **Insured Organization** knowingly uses illegal copies of programs;

(b) to render the **Data** usable by replacement processing equipment;

(c) to design, update or improve software or programs or to perfect their operation or performance; or

(d) as a result of an alteration in **Data** held on magnetic media due to the effect of magnetic fields, their incorrect use or the obsolescence of the **Computer System**;

(9) loss caused by an **Employee** which is sustained by an **Insured**:

(a) after an **Insured** becomes aware of a **Theft**, **Forgery**, or other fraudulent or dishonest act committed by such **Employee** while employed with an **Insured**;

(b) after an **Executive** or **Insurance Representative** acquires at any time knowledge of fraud or dishonesty, involving **Money**, **Securities** or other property valued at twenty-five thousand dollars ($25,000) or more, committed prior to employment with an **Insured**; or

(c) more than sixty (60) days following the termination of such **Employee**.

(10) loss due to fire, provided that this Exclusion (A)(10) shall not apply to:

(a) loss of **Money** or **Securities**; or

(b) damage to any safe or vault caused by the application of fire thereto for the purposes of **Safe Burglary**;

(11) fees, costs or expenses incurred or paid by an **Insured** in defending or prosecuting any legal proceeding or claim; provided that this Exclusion (A)(11) shall not apply to the coverage provided under Section VI Legal Expenses Extension;

(12) loss due to an **Insured** knowingly having given or surrendered **Money**, **Securities** or **Property** in any exchange or purchase with a **Third Party**, not in collusion with an **Employee**; provided that this Exclusion (A)(12) shall not apply to **Money Orders And Counterfeit Currency Fraud**;

(13) loss sustained by one **Insured** to the advantage of any other **Insured**;

(14) loss of or damage to **Money**, **Securities** or **Property** while in the custody of any bank, trust company, similar recognized place of safe deposit, armored motor vehicle company or any person who is duly authorized by the **Insured Organization** to have custody of the property; provided that this Exclusion (A)(14) shall not apply to the extent that coverage under this Coverage Section is excess of the amount recovered or received by the **Insured Organization** under:

(a) the **Insured Organization's** contract, if any, with, or insurance carried by, any of the foregoing; or

(b) any other insurance or indemnity in force which would cover the loss in whole or in part;

(15) loss due to the unlawful taking of **Money**, **Securities** or **Property**, **Computer Fraud** or any other fraudulent, dishonest or criminal act (other than **Robbery** or **Safe Burglary**), by any authorized representative of the **Insured Organization**, other than an **Employee**, provided that such authorized representative is not acting in collusion with any **Employee**.

(B) No coverage will be available under Insuring Clause (A) or (I) for loss caused by any broker, factor, commission merchant, consignee, contractor, independent contractor or other agent or representative of the same general character.

(C) No coverage will be available under Insuring Clause (B) or (C) for:

(1) loss or damage due to **Forgery**, **Computer Fraud** or **Funds Transfer Fraud**; or

(2) loss of or damage to **Money**, **Securities** or **Property** while in the mail or in the custody of a carrier for hire other than an armored motor vehicle company.

(D) No coverage will be available under Insuring Clauses (B), (C), (E) and (F) for loss or damage of **Money**, **Securities** or other property as a result of a kidnap, ransom or other extortion payment (as distinct from **Robbery**) surrendered to any person as a result of a threat to do bodily harm to any person or a threat to do damage to the **Premises** or other property.

(E) No coverage will be available under Insuring Clause (D) for loss due to **Forgery** or alteration of:

(1) any **Financial Instrument** committed by any **Third Party** in collusion with any **Employee**; or

(2) any registered or coupon obligations issued or purported to have been issued by the **Insured**, or any coupons whether attached or detached.

(F) No coverage will be available under Insuring Clause (H) for loss caused by any forgery or alteration of, on or in any written instrument; provided that this Exclusion (F) shall not apply if:

(1) the provisions, conditions and other terms under which the involved credit card was issued were fully complied with; and

(2) the **Insured Organization** is legally liable to the issuer of such credit card for such loss.

(G) No coverage will be available under this Coverage Section if the Loss Discovered option is purchased, as set forth in Item 3 of the Declarations of this Coverage Section, for any loss that the **Insured** is aware of prior to the inception date of this Coverage Section.

(H) If the Loss Sustained option is purchased, as set forth in Item 3 of the Declarations of this Coverage Section, no coverage will be available under this Coverage Section for:

(1) loss unless sustained by any **Insured** prior to the termination of this Coverage Section as to such **Insured** and **Discovered** and written notice thereof is given to the **Company** within sixty (60) days following such termination;

(2) loss unless sustained prior to the termination of any Insuring Clause or any particular coverage offered under any Insuring Clause and **Discovered** and written notice thereof is given to the **Company** within sixty (60) days following such termination; or

(3) loss unless sustained prior to the termination of this Coverage Section in its entirety, and **Discovered** and written notice thereof is given to the **Company**:

(a) within sixty (60) days following such termination, if this Coverage Section is not renewed with the **Company**;

(b) prior to such termination, if this Coverage Section is renewed with the **Company**; or

(c) within one (1) year following such termination, if the termination results from the voluntary liquidation or voluntary dissolution of the **Parent Corporation**.

(I) If the Loss Discovered option is purchased as set forth in Item 3 of the Declarations of this Coverage Section, no coverage will be available under this Coverage Section for:

(1) loss unless sustained by any **Insured**, **Discovered** and written notice thereof is given to the **Company** prior to the termination of this Coverage Section as to such **Insured**;

(2) loss unless sustained, **Discovered** and written notice thereof is given to the **Company** prior to the termination of any Insuring Clause or any particular coverage offered under any Insuring Clause;

(3) loss unless sustained, **Discovered** and written notice thereof is given to the **Company** prior to the termination of this Coverage Section in its entirety; or

(4) loss unless sustained prior to the termination of this Coverage Section and **Discovered** and written notice thereof is given to the **Company**, within one (1) year following such termination if the termination results from the voluntary liquidation or voluntary dissolution of the **Parent Corporation**.

IV. OWNERSHIP

(A) Solely for the purposes of Insuring Clauses (A) through (H), the **Company's** liability under this Coverage Section will apply only to the **Money**, **Securities** or **Property** owned by the **Insured Organization** or for which the **Insured Organization** is legally liable, or held by the **Insured Organization** in any capacity whether or not the **Insured Organization** is liable; provided that:

(1) the **Company** will not be liable for damage to the **Premises** unless the **Insured Organization** is the owner or is liable for such damage; or

(2) with respect to Insuring Clause (A) the **Company's** liability will not apply to **Money**, **Securities** or **Property** of a **Client**.

(B) Solely for the purposes of Insuring Clause (I), the **Company's** liability under this Coverage Section will apply only to the **Money**, **Securities** or other **Property** of a **Client**, which is held by the **Insured Organization** in any capacity or for which the **Insured Organization** is legally liable.

V. SPONSORED PLAN

Solely with respect to any **Sponsored Plan**, payment by the **Company** for covered loss to the **Parent Corporation** shall be held by such **Parent Corporation** for the use and benefit of the **Sponsored Plan** sustaining such loss. The Limit of Liability applicable to any **Sponsored Plan** shall equal the lesser of ten percent (10%) of the **Sponsored Plan's** assets as of the beginning of such **Sponsored Plan's** fiscal year or five hundred thousand dollars ($500,000) ("Amended Limit of Liability"); provided, however, that the following additional conditions shall also apply with respect to such coverage:

(1) Loss Involving One **Sponsored Plan**:

(a) If the applicable Limit of Liability as set forth in Item 2 of the Declarations of this Coverage Section is less than the Amended Limit of Liability, then the applicable Limit of Liability shall be the Amended Limit of Liability; or

(b) If the applicable Limit of Liability as set forth in Item 2 of the Declarations of this Coverage Section equals or exceeds the Amended Limit of Liability, then the applicable Limit of Liability shall be the Limit of Liability as set forth in Item 2 of the Declarations of this Coverage Section; or

(2) Loss Involving More Than One **Sponsored Plan**:

(a) If the applicable Limit of Liability as set forth in Item 2 of the Declarations of this Coverage Section is less than the Amended Limit of Liability as calculated for each **Sponsored Plan**, then the applicable Limit of Liability for each **Sponsored Plan** shall be the Amended Limit of Liability as calculated for each **Sponsored Plan**; or

(b) If the applicable Limit of Liability as set forth in Item 2 of the Declarations of this Coverage Section equals or exceeds the Amended Limit of Liability as calculated for all such **Sponsored Plans**, then the applicable Limit of Liability for all such **Sponsored Plans** combined shall be the Limit of Liability as set forth in Item 2 of the Declarations of this Coverage Section.

For the purposes of **Sponsored Plan** coverage hereunder, the words "sixty (60) days" are deleted from the exclusions applicable to this Coverage Section, wherever they appear, and the words "one (1) year" are substituted in place thereof. Solely with respect to loss sustained by a **Sponsored Plan**, no Deductible Amount shall apply to such loss.

VI. LEGAL EXPENSES EXTENSION

In addition to the Limits of Liability set forth in the Declarations, the **Company** shall be liable for:

(A) with respect to **Forgery** coverage under Insuring Clause (D), reasonable court costs and attorneys' fees incurred and paid with the **Company's** prior written consent in defending an **Insured Organization** or an **Insured Organization's** bank in any legal proceeding brought against it to enforce payment of a **Financial Instrument**.

(B) with respect to **Credit Card Fraud** coverage under Insuring Clause (H), reasonable court costs and attorneys' fees incurred and paid with the **Company's** prior written consent in defending an **Insured Organization** in any legal proceeding brought against it to enforce payment of a written instrument, required in connection with any credit card.

VII. LIABILITY FOR PRIOR LOSSES

(A) If the Loss Sustained option is purchased, as set forth in Item 3 of the Declarations for this Coverage Section:

(1) Coverage will be available for loss sustained prior to the inception date of this Coverage Section, or the effective date of coverage for any additional **Insureds**, or the effective date of any coverage added by endorsement, subject to the following:

(a) an **Insured** or some predecessor in interest of such **Insured** carried a prior bond or policy which afforded coverage for a loss sustained during the period of such prior bond or policy;

(b) such coverage continued without interruption from the time such loss was sustained until the inception date or effective date specified in paragraph (1) above;

(c) such loss was first **Discovered** by an **Insured** after the time allowed for discovery under the last such policy; and

(d) some or all of the coverage of an Insuring Clause under this Coverage Section would be applicable to such prior loss;

(2) If such prior bond or policy carried by the **Insured** or predecessor in interest of such **Insured** was issued by the **Company** or its affiliates, such prior bond or policy shall terminate as of the inception of this Coverage Section and such prior bond or policy shall not cover any loss not discovered and noticed to the **Company** prior to the inception of this Coverage Section; and

(3) The **Insured** shall neither be entitled to a separate recovery under each policy in force at the time any part of the prior loss was sustained, nor shall the **Insured** be entitled to recover the sum of the limits of liability of any such policies. The **Company's** maximum liability for the prior loss shall not exceed the lesser of either the limit of liability of the policy immediately preceding this Coverage Section under which part of the prior loss was sustained, or the applicable Limit of Liability as set forth in the Declarations of this Coverage Section.

(B) If the Loss Discovered option is purchased, as set forth in Item 3 of the Declarations of this Coverage Section:

(1) Coverage will be available for loss sustained at any time and **Discovered** during the **Policy Period**, provided that coverage for loss sustained prior to the effective date of this Coverage Section, or the effective date of coverage for any additional **Insureds**, or the effective date of any coverage added by endorsement, is subject to the following:

(a) if an **Insured** or some predecessor in interest of such **Insured** carried a prior bond or policy which afforded coverage for a loss sustained during the period of such prior bond or policy and such prior bond or policy was not issued by the **Company** or its affiliates and such loss was first **Discovered** by an **Insured** prior to the expiration of the time allowed for discovery under the last such policy, then no coverage shall be available under this Coverage Section, unless the total amount of covered loss exceeds the limit of liability of the last such bond or policy carried by the **Insured** or predecessor in interest of such **Insured**, and the **Company's** Limit of Liability for any such loss will be in excess of the limit of liability of the last bond or policy subject to all of the terms and conditions of this Coverage Section; or

(b) if an **Insured** or some predecessor in interest of such **Insured** carried a prior bond or policy which afforded coverage for a loss sustained during the period of such prior bond or policy and such prior bond or policy was issued by the **Company** or its affiliates then such prior bond or policy shall terminate as of the inception of this Coverage Section and such prior bond or policy shall not cover any loss not discovered and noticed to the **Company** prior to the inception of this Coverage Section and then the **Company's** Limit of Liability for such loss shall be the applicable Limit of Liability shown on the Declarations of this Coverage Section.

VIII. LIMITS OF LIABILITY

(A) The **Company's** maximum liability for each loss shall not exceed the Limit of Liability applicable to such loss, as set forth in Item 2 of the Declarations of this Coverage Section, regardless of the number of **Insureds** sustaining the loss.

(B) If a direct loss is covered under more than one Insuring Clause, the maximum amount payable under this Coverage Section shall not exceed the largest applicable Limit of Liability of any such Insuring Clause.

(C) All loss resulting from a single act or any number of acts of the same **Employee** or **Third Party**, and all loss whether such act or acts occurred before or during the **Policy Period**, will be treated as a single loss and the applicable Limit of Liability of this Coverage Section will apply, subject to Section VII Liability for Prior Losses.

IX. NON-ACCUMULATION OF LIABILITY

(A) When there is more than one **Insured**, the maximum liability of the **Company** for loss sustained by one or all **Insureds** shall not exceed the amount for which the **Company** would be liable if all losses were sustained by any one **Insured**.

(B) Regardless of the number of years this coverage remains in effect and the total premium amounts due or paid, the amount the **Company** shall pay for any loss shall not be cumulative from year to year or from **Policy Period** to **Policy Period**.

X. PROOF OF LOSS AND LEGAL PROCEEDINGS

(A) Knowledge possessed by any **Insured** or **Discovery** shall be deemed knowledge possessed by or **Discovery** by all **Insureds**.

(B) It is a condition precedent to coverage hereunder that, upon **Discovery**, the **Parent Corporation** will:

(1) give written notice to the **Company** (or to a licensed agent of the **Company** in the state of New York) at the earliest practicable moment, and in no event later than ninety (90) days after such **Discovery**, with sufficient information to identify the **Parent Corporation**;

(2) furnish a proof of loss with full particulars to the **Company** within six (6) months of such **Discovery**, including:

(a) submission to examination under oath at the **Company's** request;

(b) production of all pertinent records at such reasonable times and places as the **Company** shall designate; and

(3) provide full cooperation with the **Company** in all matters pertaining to a loss or claim.

(C) The **Parent Corporation** may offer a comparison between an **Insured Organization's** inventory records and actual physical count of its inventory to prove the amount of loss, only where an **Insured Organization** establishes wholly apart from such comparison that it has sustained a covered loss, caused by an identified **Employee**.

(D) No **Insured** shall institute legal proceedings against the **Company**:

(1) after two (2) years immediately following any **Discovery**; or

(2) to recover a judgment or settlement against it or its bank resulting from **Forgery**, **Credit Card Fraud** or related legal expenses as set forth in Section VI Legal Expenses Extension, after two (2) years immediately following the date upon which such judgment shall become final or settlement was entered.

XI. VALUATION AND FOREIGN CURRENCY

The **Company** shall pay:

(A) the least of:

(1) the actual market value of lost, damaged or destroyed **Securities** at the closing price of such **Securities** on the business day immediately preceding the day on which a loss is **Discovered**;

(2) the cost of replacing **Securities**; or

(3) the cost to post a Lost Instrument Bond;

Such cost shall be paid by the **Company** on behalf of an **Insured**;

(B) the cost of blank books, pages or tapes or other blank materials to replace lost or damaged books of account or other records;

(C) the least of:

(1) the price paid by an **Insured** for the **Property**; or

(2) the cost to repair or replace **Property** with that of similar quality and value at the time the **Parent Organization** complies with Section X Proof of Loss and Legal Proceedings, regarding the furnishing of proof of loss; or

(D) the United States of America dollar value of foreign currency based on the rate of exchange published in *The Wall Street Journal* on the day loss involving foreign currency is **Discovered**.

XII. OTHER INSURANCE

If the Insured or any other party in interest in any loss covered by this Coverage Section has any valid and collectible bond, indemnity or insurance which would cover such loss in whole or in part in the absence of this Coverage Section, then this Coverage Section shall be null and void to the extent of the amount recoverable or received under such other bond, indemnity, or insurance; but this Coverage Section shall cover such loss, subject to its exclusions, conditions and other terms, only to the extent of the amount of such loss in excess of the amount recoverable or received under such other bond, indemnity or insurance.

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 1

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

AMEND DEFINITION OF COMPUTER SYSTEM ENDORSEMENT

In consideration of the premium charged, it is agreed that the term **Computer System**, as defined in Subsection II. DEFINITIONS of this coverage section, is amended to read in its entirety as follows:

> **Computer System** means a computer and all input, output, processing, storage, off-line media library and communication facilities which are connected to such computer, provided that such computer and facilities are:
>
> (a) owned and operated by an **Insured Organization**;
>
> (b) leased and operated by an **Insured Organization**; or
>
> (c) utilized by an **Insured Organization**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 2

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

AMEND SUBSECTION IV OWNERSHIP ENDORSEMENT

In consideration of the premium charged, it is agreed that paragraph (B) of Subsection IV., Ownership, of this Coverage Section is deleted and replaced with the following:

(B) Solely for the purposes of Insuring Clause (I), the **Company's** liability under this Coverage Section will apply only to **Money**, **Securities** or other **Property**:

(1) owned by a **Client**, which is held by the **Insured Organization** in any capacity or for which the **Insured Organization** is legally liable; or

(2) held by the **Client**, for which the **Client** is legally liable.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 3

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

PRIVACY AND DATA BREACH EXCLUSIONS ENDORSEMENT

In consideration of the premium charged, it is agreed that:

1. Exclusion (A)(2) of this Coverage Section is deleted.

2. No coverage will be available under this Coverage Section for:

   (i) loss involving the disclosure of an **Insured's** or another entity or person's confidential or personal information while in the care, custody or control of an **Insured** including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any similar type of nonpublic information;

   (ii) loss involving the use of another entity or person's confidential or personal information while in the care, custody or control of an **Insured** including, but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any similar type of nonpublic information; or

   (iii) fees, costs, fines, penalties or any other expenses incurred by an **Insured** which result, directly or indirectly, from the access to or disclosure of another entity or person's confidential or personal information, including but not limited to, patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any similar type of nonpublic information,

   provided, however, that the above exclusions 2(i) and 2(ii) shall not apply to loss that is otherwise covered under any Insuring Clause other than Insuring Clause (J), Expense Coverage.

3. The definition of **Property** in Section II, Definitions, of this Coverage Section shall not include any **Insured's** or another entity or person's confidential or personal information.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 4

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

SOCIAL ENGINEERING FRAUD COVERAGE ENDORSEMENT

In consideration of the premium charged, it is agreed that solely with respect to the coverage afforded by this endorsement, the following shall apply:

(1) Item 2. of the Declarations of this coverage section is amended to include the following:

Item 2.

Insuring Clauses	Limits of Liability	Retention
Social Engineering Fraud Coverage:	$50,000.00	$10,000.00

(2) The following Insuring Clause is added:

Social Engineering Fraud Coverage Insuring Clause

The Company shall pay the **Organization** for loss resulting from an **Insured Organization** having transferred, paid or delivered any **Money** or **Securities** as the direct result of **Social Engineering Fraud** committed by a person purporting to be a **Vendor**, **Client**, or an **Employee** who was authorized by the **Organization** to instruct other **Employees** to transfer **Money** or **Securities**.

(3) Subsection II, Definitions, is amended to include the following terms:

Vendor means any entity or natural person that has provided goods or services to an **Organization** under a legitimate pre-existing arrangement or written agreement. However, **Vendor** does not include any financial institution, asset manager, broker-dealer, armored motor vehicle company, or any similar entity.
Social Engineering Fraud means the intentional misleading of an **Employee**, through misrepresentation of a material fact which is relied upon by an **Employee,** believing it be genuine.

(4) Exclusion III. (A)(12) is deleted.

(5) Exclusion III. (A)(15) is deleted and replaced with the following:

(15) loss due to the unlawful taking of **Money**, **Securities** or **Property**, **Computer Fraud, Social Engineering Fraud**, or other fraudulent, dishonest or criminal act (other than **Robbery** or **Safe Burglary**), by any authorized representative of the **Insured Organization**, other than an **Employee**, provided that such authorized representative is not acting in collusion with any **Employee**.

(6) Exclusion III. (D) is deleted and replaced with the following:

(D) No coverage will be available under Insuring Clauses (B), (C), (E), (F) or Social Engineering Fraud Coverage Insuring Clause for loss or damage of **Money**, **Securities** or other property as a result of a kidnap, ransom or other extortion payment (as distinct from **Robbery**) surrendered to any person as a result of a threat to do damage to the **Premises** or other property.

(7) No coverage will be available under Social Engineering Fraud Coverage Insuring Clause for:

(a) loss or damage due to **Theft** by an **Employee**, **Forgery**, **Computer Fraud**, **Funds Transfer Fraud**, **Money Orders and Counterfeit Currency Fraud** or **Credit Card Fraud**;

(b) loss of or damage to **Money** or **Securities** while in the mail or in the custody of any carrier for hire, including but not limited to any armored motor vehicle company;

(c) loss due to any investment in **Securities**, or ownership in any corporation, partnership, real property, or similar instrument, whether or not such investment is genuine;

(d) loss due to the failure, malfunction, inadequacy or illegitimacy of any product or service;

(e) loss due to the failure of any party to perform in whole or in part under any contract;

(f) loss due to the extension of any loan, credit or similar promise to pay;

(g) loss due to any gambling, game of chance, lottery or similar game;

(h) loss of or damage to any **Property;**

(i) loss due to any party's use of or acceptance of any credit card, debit card or similar instrument, whether or not genuine.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement: July 26, 2025

Company: Federal Insurance Company

Endorsement No. 5

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

ADD INSURED ORGANIZATION ENDORSEMENT

In consideration of the premium charged, it is agreed that solely with respect to the coverage available under the Coverage Section identified above, the term **Insured Organization**, as defined in Section II General Definitions (H) of the General Terms and Conditions Section, is amended to include:

Cancer Care Co-Payment Assistance Foundation, Inc.

The title and any headings in this endorsement are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this policy shall remain unchanged.



Authorized Representative

CHUBB®

IMPORTANT NOTICE TO POLICYHOLDERS

Social Engineering Tips
Please read!

HAVE YOU BEEN TRICKED INTO WIRE FRAUD? TAKE IMMEDIATE ACTION!

If you believe you have transferred funds to a criminal posing as a legitimate business associate, you should act quickly:

1. Immediately contact the originating bank and **request a recall of the wire transfer** and confirm that recall in writing.
2. Immediately file a **complaint with the FBI** at www.ic3.gov. This reporting triggers the FBI's Recovery Asset Team and the FBI's assistance seeking return of the wire transfer.
3. Preserve **records of the incident**, including emails sent and received *in their original electronic state*. Correspondence and forensic information contained in these electronic files help investigators shed light on the perpetrator(s), and parties responsible for the incident.
4. Once the above steps are complete, **contact Chubb** per the instructions in your policy.

While neither recalling the wire transfer nor reporting to the FBI guarantees the return of your funds, these steps maximize the opportunity to mitigate your loss, assist the FBI in tracing the funds and help establish any insurance claim.

Simple Steps to Prevent Fraudulently Induced Wire Transfers

Email communication is efficient, but it is not a secure method of communication. Regardless of your familiarity with a contact, that contact's **email may be intercepted, altered and fabricated**. You may reduce the chances of fraud by following these best practices:

1. **Verify Email Requests by Telephone**: Require those responsible for paying invoices or changing bank routing information to verify payment details over the phone, rather than by email or documents sent electronically. Making a phone call to a known, pre-existing telephone number remains the single best protection against fraud.
2. **Segregate Wire Transfer Responsibilities**: Establish a standing policy that requires at least three people to review and approve wire transfer requests, pay an invoice or change a business partner's bank account information. Such requests should be entered by the initiator of the wire and verified by two independent signatories.
3. **Turn on MFA for Cloud Email**: Multifactor Authentication is available from all major email providers. It provides a layer of security to email accounts beyond a user's account name and password, making it harder for criminals to impersonate you, your executives and your employees.

This document is for information only. It is offered as a resource to be used together with your professional insurance advisers in maintaining a loss prevention program. No liability is assumed by reason of the information this document contains.

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 7

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

FRAUDULENT INSTRUCTIONS EXCLUSION

No coverage will be available under Insuring Clauses (B), (C), (D), (E), and (F) for loss resulting from any transfer, payment or delivery of **Money**, **Securities**, or **Property** approved by an **Employee** or arising out of any misrepresentation received by any **Employee**, agent, independent contractor or other representative of the **Insured**, whether such transfer, payment or delivery was made in good faith or as a result of trick, artifice, fraud or false pretenses.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative

ENDORSEMENT/RIDER

Coverage Section: ForeFront Portfolio Crime Coverage Section (New York - Federal & Vigilant)

Effective date of
this endorsement/rider: July 26, 2025

Federal Insurance Company

Endorsement/Rider No. 8

To be attached to and
form a part of Policy No. 8251-8561

Issued to: Cancer Care, Inc.

ERISA AMENDATORY ENDORSEMENT

In consideration of the premium charged, it is agreed that solely with respect to loss sustained by any **ERISA Plan** included as an **Insured**, this Coverage Section is amended as follows:

(1) Section V, Sponsored Plan, is deleted.

(2) Insuring Clause (A) is deleted and replaced with the following:

Insuring Clause (A): Fiduciary Dishonesty Coverage

The Company shall pay the **Insured** for loss of **Money**, **Securities**, or **Property** resulting directly from **Fraud or Dishonesty** committed by an **Employee** acting alone or in collusion with others.

(3) Section II, Definitions, is amended as follows:

A. The definition of **Employee(s)** is deleted and replaced with the following:

Employee(s) means any natural person while in the service of any **Insured** who is required to be bonded by Title 1 of **ERISA**, including:

(a) a fiduciary;

(b) a trustee;

(c) an administrator;

(d) an officer;

(e) any other natural person who handles **ERISA Plan** assets; or

(f) any natural person described paragraphs (a) through (e) above during a period not exceeding sixty (60) days following the termination of such natural person's service.

Provided, however, **Employee** shall not include any independent contractor or any agent, broker, factor, commission merchant, consignee, or representative of the same general character or employee thereof.

B. The definition of **Sponsored Plan** is deleted and replaced with the following:

NOTICE: THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK STATE INSURANCE LAW AND REGULATIONS. HOWEVER, THE FORMS AND RATES MUST MEET THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.

Sponsored Plan means any **ERISA Plan** and **Non-ERISA Plan**.

C. The following definitions are added:

ERISA means the Employee Retirement Income Security Act of 1974, as amended.

ERISA Plan means any Employee Benefit Plan, Pension Benefit Plan, or Welfare Benefit Plan, as defined under **ERISA**, which is operated solely by an **Organization** or jointly by an **Organization** and a labor organization for the benefit of **Employees** and which existed on or before the inception of this Coverage Section or which is created or acquired after the inception of this Coverage Section, provided that **ERISA Plan** shall not include any multi-employer plan.

Fraud or Dishonesty means any intentional act of larceny, theft, embezzlement, forgery, misappropriation, wrongful abstraction, wrongful conversion or willful misapplication, or any other intentional fraudulent or dishonest act. **Fraud or Dishonesty** shall also include any intentional act prohibited by Title 18, Section 1954 of the U.S. Code.

Non-ERISA Plan means any employee benefit plan not subject to Title 1 of the Employee Retirement Income Security Act of 1974, as amended, and as amended by the Pension Protection Act of 2006, which is operated solely by an **Organization** or jointly by an **Organization** and a labor organization for the benefit of **Employees** and which existed on or before the inception of this Policy or which is created or acquired after the inception of this Policy, provided that **Non-ERISA Plan** shall not include any multi-employer plan.

(4) Section III, Exclusions, is deleted and replaced with the following:

III. LIMITATIONS

The Company shall not be liable for loss involving:

(a) the disclosure of confidential or personal information while in the care, custody or control of an **Insured**, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, retirement or health savings account information or any similar type of non-public information, provided that this limitation shall not apply to loss that is otherwise covered under this Coverage Section caused by an **Employee's** acts of **Fraud or Dishonesty** through the use of, disclosure of or access to such confidential or personal information; or

(b) fees, costs, fines, penalties or any other expenses incurred by an **Insured** which result, directly or indirectly, from the access to or disclosure of an **Insured's** or another entity's or person's confidential or personal information, including but not limited to patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information, retirement or health savings account information or any similar type of non-public information.

(5) Section IV, Ownership, is amended to the extent that wherever the term **Insured Organization** appears, it is deleted and replaced with **Insured Organization** or **ERISA Plan**.

(6) Section VIII, Limits of Liability, is deleted and replaced with the following:

The Company's maximum liability for each loss shall not exceed the Limit of Liability applicable to such loss, as set forth in Item 2 of the Declarations regardless of the number of **Insureds** sustaining the loss.

The payment of any loss under this Coverage Section shall not reduce the liability of the Company for other losses whenever sustained; provided, however, that the total liability of the Company for all loss resulting from any act or any series of acts committed by the same **Employee** or in which the same **Employee** is concerned or implicated, regardless of whether such act or series of acts was committed before or during the **Policy Period**, will be treated as a single loss and the applicable Limit of Liability of this Coverage Section will apply.

With respect to each **ERISA Plan**:

(a) if covered loss is sustained by any **ERISA Plan** which does not have any employer securities, the Limit of Liability applicable to such covered loss shall be the greater of:

(1) $1,000; or

(2) ten percent (10%) of the funds handled by such **ERISA Plan** as of the effective date of this Coverage Section,

up to a maximum limit of liability of $500,000; or

(b) if covered loss is sustained by any **ERISA Plan** which does have any employer securities, the Limit of Liability applicable to such covered loss shall be the greater of:

(1) $1,000; or

(2) ten percent (10%) of the funds handled by such **ERISA Plan** as of the effective date of this Coverage Section,

up to a maximum limit of liability of $1,000,000,

provided that, in all events (i) if the Limit of Liability as set forth in Item 2 of the Declarations is less than the amounts set forth in paragraphs (a) or (b) above, then the applicable Limit of Liability shall be equal to the minimum limit of insurance as required by **ERISA**; or (ii) if the Limit of Liability as set forth in Item 2 of the Declarations equals or exceeds the amounts set forth in paragraphs (a) or (b) above, then the Limit of Liability shall be the Limit of Liability as set forth in Item 2 of the Declarations.

No deductible shall apply to loss sustained by an **ERISA Plan** covered under this Coverage Section.

(7) The following subsections are added:

- **PAYOVER**

In compliance with Title 1 of **ERISA**, payment by the Company shall be held to the benefit of any **Insured(s)** sustaining a loss. If such payment is in excess of the amount of coverage required by **ERISA** for such **Insured(s)**, such excess shall be held for the use and benefit of any other named **Insured(s)** should such **Insured(s)** also **Discover** loss recoverable hereunder. If **Money**, **Securities**, and other **Property** of two or more **Insureds** is commingled, recovery hereunder for loss of such **Money**, **Securities**, and other **Property** shall be shared by such **Insureds** on a pro rata basis in accordance with the amount of coverage each such **Insured** is required to carry pursuant to **ERISA**.

- **EXTENDED DISCOVERY PERIOD**

This Coverage Section covers loss sustained prior to the termination or cancellation of this Coverage Section and **Discovered**:

(a) within twelve (12) calendar months following the termination or cancellation of this Coverage Section in its entirety; or

(b) within twelve (12) calendar months following the termination or cancellation of this Coverage Section as to any **Insured**,

in accordance with Section XIX, Termination of Policy of the General Terms and Conditions.

Provided that this Extended Discovery Period terminates immediately upon the effective date of any other insurance obtained which replaces the coverage afforded by this Coverage Section in an amount no less than the minimum amount required under **ERISA** and provides coverage for loss sustained prior its effective date.

- **TERMINATION**

This Coverage Section shall terminate as to any **Employee** and no coverage will be available for loss caused by such **Employee**:

(a) immediately upon **Discovery** by any **Executive** or **Insurance Representative** (not in collusion with such **Employee**) of any fraudulent or dishonest act on the part of such **Employee** while in the service of any **Insured**;

(b) after an **Executive** or **Insurance Representative** becomes aware of any fraudulent or dishonest act by such **Employee** involving **Money**, **Securities** or **Property** valued at twenty-five thousand dollars ($25,000) or more, committed prior to such **Employee's** service with any **Insured**; provided, however, that this paragraph (b) shall not apply to an **Employee** located in the state of New York who was convicted of a fraudulent or dishonest act prior to such **Employee's** employment with the **Insured**, and for which the **Insured** made a determination to hire or retain such **Employee** utilizing the factors set forth in Correction Law Article 23-A; or

(c) more than sixty (60) days following the termination of service to any **Insured** of such **Employee**.

The title and any headings in this endorsement/rider are solely for convenience and form no part of the terms and conditions of coverage.

All other terms, conditions and limitations of this Policy shall remain unchanged.



Authorized Representative